The Patent Rules, 2003

UNION OF INDIA
India

The Patent Rules, 2003

Rule THE-PATENT-RULES-2003 of 2003

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18.

/830Whereas certain draft rules were published in exercise of the powers conferred by section 159 of the Patents Act, 1970 (39 of 1970) vide notification of the Government of India in Ministry of Commerce and Industry (Department of Industrial Policy and Promotion) vide Number S.O.1018(E), dated the 20th September, 2002, in Part II, section 3, sub-section (ii) of the Gazette of India, (Extraordinary) dated 20th September, 2002 for inviting objections and suggestions from persons likely to be affected thereby before expiry of a period of thirty days from the date on which copies of the Gazette containing the Notification were made available to the public;And whereas the copies of the Gazette containing the said Notification were made available to the public on 3rd October, 2002;And whereas objections and suggestions received from the public on the said draft rules have been considered by the Central Government;Now, therefore, in exercise of the powers conferred by section 159 of the Patents Act, 1970 (39 of 1970) and in supersession of the Patents Rules, 1972 published in the Gazette of India, vide S.O. 301(E), dated 20th April, 1972 in Part II, section 3, sub-section (ii), except as respect things done or omitted to be done before such supersession, Central Government hereby makes the following rules, namely:-

Brought into force on 20.5.2003.

Chapter I
Preliminary

1. Short title and commencement

.-(1) These rules may be called The Patents Rules, 2003.(2)They shall come into force on the date on which the Patents (Amendment) Act, 2002 comes into force.

2. Definitions

.-In these rules, unless the context otherwise requires,-(a)"Act" means the Patents Act, 1970 (39 of 1970);(b)"appropriate office" means the appropriate office of the patent office as specified in rule 4;(c)"article" includes any substance or material, and any plant, machinery or apparatus, whether affixed to land or not;(d)"Form" means a Form specified in the Second Schedule;(db)["Request for examination" means a request for examination, including expedited examination, made under section 11B in respect of rule 24B or rule 24C;] [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](e)"Schedule" means Schedule to these rules;(f)"section" means a section of the Act;(g)words and expressions used, but not defined in these rules, shall have the meanings respectively assigned to them in the Act.

3. Prescribed particulars

.-Save as otherwise provided in these rules, the particulars contained in a Form are hereby prescribed as the particulars, if any, required under the relevant provision or provisions of the Act.

4. Appropriate office

.-(1) The appropriate office of the patent office shall-(i)for all the proceedings under the Act, [* * *] [The words and figures " other than those under Sections 39, 65 and 125" omitted by S.O. 657(E), dated 5.5.2006 (w.e.f. 5.5.2006).] be the head office of the patent office or the branch office, as the case may be, within whose territorial limits-(a)the applicant or first mentioned applicant in case of joint applicants for a patent, normally resides or has his domicile or has a place of business or the place from where the invention actually originated; or(b)the applicant for a patent or party in a proceeding if he has no place of business or domicile in India, the address for service in India given by such applicant or party is situated; and[* * *] [Clause (ii) omitted by S.O. 657(E), dated 5.5.2006 (w.e.f. 5.5.2006).](2)The appropriate office once decided in respect of any proceedings under the Act shall not ordinarily be changed.

5. Address for service.

- [Every person, concerned in any proceedings to which the Act or these rules relate and every patentee, shall furnish to the Controller an address for service, including a postal address in India and an e-mail address, and such address for service shall be treated for all purposes connected with such proceedings or patent as the address of the person concerned in the proceedings or of the patentee. Unless such an address for service is given, the Controller shall be under no obligation either to proceed or deal with any proceeding, or patent or to send any notice that may be required

to be given under the Act or these rules and the Controller may take suo motu decision in the matter:Provided that a patent agent shall also be required to furnish to the Controller a mobile number registered in India.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

6. Leaving and serving documents

.- [(1) Any application, notice or other document authorised or required to be filed, left, made or given at the patent office, or to the Controller or to any other person under the Act or these rules, may be tendered by hand or sent by a letter addressed to the Controller at the appropriate office or to that person through post or registered post or speed post [* * *] [[Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (1) (w.e.f. 1.1.2005).]] or by electronic transmission duly authenticated. If it is sent by post or registered post or speed post [* * *] [Omitted 'or courier service' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).] or by electronic transmission duly authenticated, it shall be deemed to have been filed, left, made or given at the time when the mail containing the same would have been delivered in the ordinary course of post or registered post or speed post [* * *] [Omitted 'or courier service' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).], or by electronic transmission duly authenticated, as the case may be. In proving such sending, it shall be sufficient to show that the mail was properly addressed and transmitted:][* * *] [Proviso omitted by S.O. 657(E), dated 5.5.2006 (w.e.f. 5.5.2006).](1A)[Notwithstanding anything contained in sub-rule (1), a patent agent shall file, leave, make or give all documents only by electronic transmission duly authenticated, including scanned copies of documents that are required to be submitted in original:Provided that the original documents that are required to be submitted in original, shall be submitted within a period of fifteen days, failing which such documents shall be deemed not to have been filed.] [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](2)[Any written communication addressed to a patentee at his postal address or e-mail address, as it appears on the register of patents or at his address for service given under rule 5, or to any applicant or opponent in any proceedings under the Act or these rules, at the postal address or e-mail address, appearing on the application or notice of opposition, or given for service, shall be deemed to be properly addressed.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](3)All notices and all written communications addressed to a patentee, or to any applicant or opponent in any proceedings under the Act or these rules, and all documents forwarded to the patentee or to the said applicant or opponent, shall, except when they are sent by special messenger, be sent by registered post or speed post [* * *] [Omitted 'or courier service' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).] or by electronic transmission duly authenticated.(4)The date of a notice or a written communication addressed to a patentee or to any applicant or opponent in any proceedings under the Act and these rules shall be the date of dispatch of the said notice or written communication, by registered post or speed post [* * *] [Omitted 'or courier' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).] or fax or by electronic transmission duly authenticated, as the case may be, unless otherwise specified under the Act or these rules.(5)In case of delay in receipt of a document or a communication sent by the patent office to a party to any proceedings under the Act or these rules, the delay in transmitting or resubmitting a document to the patent office or doing any act by the party may be condoned by the Controller if a petition for such condonation of delay is made by the

party to the Controller immediately after the receipt of the document or a communication alongwith a statement regarding the circumstances of the fact and evidence in support of the statement:Provided that the delay condoned by the Controller shall not exceed the period between the date on which the party was supposed to have received the document or communication by ordinary course of mail or electronic transmission and the actual date of receipt of the same.(6)[Without prejudice to sub-rule (5) and notwithstanding anything contained in sub-rule (2) of rule 138, the Controller may condone the delay in transmitting or resubmitting a document to the patent office or performing any act by a party, if a petition for such condonation of delay is made by the party to the Controller along with a statement regarding the circumstances of the fact and evidence in support of the statement, to the satisfaction of the Controller, that the delay was due to war, revolution, civil disorder, strike, natural calamity, a general unavailability of electronic communication services or other like reason in the locality where the party resides or has place of business, and that such situation was of such severity that it disrupted the normal communication in that area and that the relevant action was taken as soon as reasonably possible not later than one month from the date when such situation had ceased to exist: Provided that the delay condoned by the Controller shall not exceed the period for which the national emergency was in force, or six months from the expiry of the prescribed period, whichever is earlier.(7)Any liability or burden of proof regarding the authenticity of any document filed, left, made or given under these rules, including electronically transmitted documents, shall lie only with the party filing, leaving, making or giving the document.] [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

7. Fees

.-(1) The fees payable under section 142 in respect of the grant of patents and applications therefor, and in respect of other matters for which fees are required to be payable under the Act shall be as specified in the First Schedule.(2)[(a) The fees payable under the Act or these rules may be paid at the appropriate office either in cash or through electronic means or may be sent by bank draft or banker's cheque payable to the Controller of Patents and drawn on a scheduled bank at the place where the appropriate office is situated and if the draft or banker's cheque is sent by post, the fees shall be deemed to have been paid on the date on which the draft or banker's cheque has actually reached the Controller.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).][* * *] [Omitted '(b) Cheques or drafts not including the correct amount of commission and cheques on which the full value specified therein cannot be collected in cash within the time allowed for payment of the fees, shall be accepted only at the discretion of the Controller.' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](c)[Where a fee is payable in respect of a document, the entire fee shall accompany the document.] [Substituted by S.O. 657(E), dated 5.5.2006, for Clause (c) (w.e.f. 5.5.2006).](3)In case an application processed by a natural person is fully or partly transferred to a person other than a natural person, the difference, if any, in the scale of fee(s) between the fee(s) charged from an natural person and the fee(s) chargeable from the person other than the natural person in the same matter shall be paid by the new applicant with the request for transfer.(4)[Fees once paid in respect of any proceeding shall not ordinarily be refunded irrespective of whether the proceeding has taken place or not:Provided that, if the Controller is satisfied that during the online filing process, the fee was paid more than once for the

same proceeding, the excess fee shall be refunded.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](4A)[Notwithstanding anything contained in sub-rule (4), upon the withdrawal of an application in respect of which a request for examination has been filed, but before issuance of first statement of objection, the fee may be refunded to the extent prescribed in the First Schedule on a request made by the applicant in Form 29.] [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](5)(i)Subject to the approval of the Controller, any person may deposit money in advance and request the Controller to realise any fee payable by him from the said deposit and in such case the date of the receipt of the request to realise the fee or the date on which the request to realise the fee is deemed to have been received, whichever is earlier, shall be taken as the date of payment of the fee:Provided that the requisite amount of money is available at the credit of the person making such request.(ii)Subject to the approval of the Controller, any person may discontinue the deposit of money in advance and in such case the balance, if any, shall be refunded.

8. Forms

.-(1) The Forms set forth in the Second Schedule with such variations as the circumstances of each case may require shall be used for the purposes mentioned therein.(2)[Where no Form is so specified for any purpose, the applicant may use Form 30 specified in the Second Schedule.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

9. Size, etc., of documents

.-(1) All documents and copies of documents, except affidavits and drawings, sent to or left at the patent office or otherwise furnished to the Controller shall be written or typewritten or printed either in Hindi or in English language (unless otherwise directed or allowed by the Controller) in large and legible characters with deep indelible ink with lines widely spaced upon one side only of strong white paper of a size A-4 of approximately 29.7 centimeters by 21 centimeters with a margin of at least 4 centimeters on the top and left hand part and 3 cm on the bottom and right hand part thereof. Any signature which is not legible or which is written in a script other than Hindi or English shall be accompanied by a transcription of the name either in Hindi or in English in block letters:Provided that any document including drawing, if any, may also be filed in electronic form alongwith a copy of it on white paper:Provided further that in case the application for patent discloses sequence listing of nucleotides and/or amino acids, the same shall be filed in electronic form.(2)Additional copies of all documents shall be filed at the appropriate office, if required by the Controller.(3)Names and addresses of applicants and other persons shall be given in full together with their nationality and such other particulars, if any, as are necessary for identification.

Chapter II
Application For Patents

10. Period within which proof of the right under section 7(2) to make the application shall be furnished

.-Where, in an application for a patent made by virtue of an assignment of the right to apply for the patent for the invention, if the proof of the right to make the application is not furnished with the application, the applicant shall within a period of [six months] [Substituted by S.O. 657(E), dated 5.5.2006, for " three months" (w.e.f. 5.5.2006).] after the filing of such application furnish such proof.Explanation .-For the purposes of this rule, the [six months] [Substituted by S.O. 657(E), dated 5.5.2006, for " three months" (w.e.f. 5.5.2006).] period in case of an application corresponding to an international application in which India is designated shall be reckoned from the actual date on which the corresponding application is filed in India.

11. Order of recording applications

.-The applications filed in a year shall constitute a series identified by the year of such filing. In case of an application filed corresponding to an international application in which India is designated, such application shall constitute a series distinct from the rest of the applications identified by the year of filing of corresponding applications in India.

12. Statement and undertaking regarding foreign applications

.-(1) The statement and undertaking required to be filed by an applicant for a patent under sub-section (1) of section 8 shall be made in Form 3.[(1-A) The period within which the applicant shall file the statement and undertaking under sub-section (1) of section 8 shall be] [Instituted by S.O. 1418(E), dated 28th December, 2004 (w.e.f. 1st January, 2005).] [six months] [Substituted by S.O. 657(E), dated 5.5.2006, for " three months" (w.e.f. 5.5.2006).] from the date of filing the application.Explanation .-For the purpose of this rule, the period of six months in case of an application corresponding to an international application in which India is designated shall be reckoned from the actual date on which the corresponding application is filed in India.(2)The time within which the applicant for a patent shall keep the Controller informed of the details in respect of other applications filed in any country in the undertaking to be given by him under clause (b) of sub-section (1) of section 8 shall be six months from the date of such filing.(3)[When so required by the Controller under sub-section (2) of section 8, the applicant shall furnish information relating to objections, if any, in respect of novelty and patentability of the invention and any other particulars as the Controller may require which may include claims of application allowed within] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rules (3) and (4) (w.e.f. 1.1.2005).][six months] [Substituted by S.O. 657(E), dated 5.5.2006, for " three months" (w.e.f. 5.5.2006).][from the date of such communication by the Controller.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rules (3) and (4) (w.e.f. 1.1.2005).]

13. Specifications

.-(1) Every specification, whether provisional or complete, shall be made in Form 2.(2)A specification in respect of a divisional application under section 16 shall contain specific reference to the number of the original application from which the divisional application is made.(3)A specification in respect of a patent of addition under section 54 shall contain a specific reference to the number of the main patent, or the application for the main patent, as the case may be and a definite statement that the invention comprises an improvement in, or a modification of, the invention claimed in the specification of the main patent granted or applied for.(4)[Where the invention requires explanation through drawings, such drawings shall be prepared in accordance with the provisions of rule 15 and shall be supplied with, and referred to in detail, in the specification, including the claims where the features illustrated in the drawings shall be followed by their respective reference signs in parentheses:Provided that in case of a complete specification, if the applicant desires to adopt the drawings filed with the provisional specification as the drawings or part of the drawings for the complete specification, it shall be sufficient to refer to them in the complete specification as those left or filed with the provisional specification.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](5)Irrelevant or other matter, not necessary, in the opinion of the Controller, for elucidation of the invention, shall be excluded from the title, description, claims and drawings.(6)[Except in the case of an application (other than a convention application or an application filed under the Patent Cooperation Treaty designating India) which is accompanied by a complete specification, a declaration as to the inventorship of the invention shall be filed in Form 5 with the complete specification or at any time before the expiration of one month from the date of filing of the complete specification, as the Controller may allow on an application made in Form 4.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (6) (w.e.f. 1.1.2005).]Explanation .-For the purposes of this rule, the date of filing of the complete specification with respect to an application corresponding to an international application in which India is designated shall be reckoned from the actual date on which the corresponding application is filed in India.(7)(a)The abstract as specified under clause (d) of sub-section (4) of section 10, accompanying the specification shall commence with the title of the invention. The title of the invention shall disclose the specific features of the invention normally in not more than fifteen words.(b)[The abstract shall contain a concise summary of the matter contained in the specification and the summary shall indicate clearly the technical field to which the invention belongs, technical advancement of the invention as compared to the existing knowledge and principal use of the invention excluding any speculative use and where necessary, the abstract shall contain the chemical formula, which characterises the invention.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](c)The abstract may not contain more than one hundred and fifty words.(d)If the specification contains any drawing, the applicant shall indicate on the abstract the figure, or exceptionally, the figures of the drawings which may accompany the abstract when published. Each main feature mentioned in the abstract and illustrated by a drawing shall be followed by the reference sign used in that drawing.(e)The abstract shall be so drafted that it constitutes an efficient instrument for the purposes of searching in the particular technical field, in particular by making it possible to assess whether there is a need to consult the specification itself.(8)[The period within which reference to the deposit shall be made in the specification under sub-clause (A) of clause (ii) of sub-section (4) of section 10 shall be three months from the date of

filing of the application:Provided that in case of a request for publication under rule 24A, such reference shall be made on or before the date of filing of such request.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

14. [Amendments to specifications. [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

(1)When amendments are made to a provisional or complete specification or any drawing accompanying it, the pages incorporating such amendments shall be retyped and submitted to form a continuous document.(2)A marked copy clearly identifying the amendments carried out and a statement clearly indicating the portion (page number and line number) of the specification or drawing being amended along with the reason shall also be filed.(3)Amendments shall not be made by slips pasted on, or as footnotes or by writing in the margin of any of the said documents.(4)When a retyped page or pages incorporating amendments are submitted, the corresponding earlier page shall be deemed to have been superseded and cancelled by the applicant.]

14. [Amendments to specifications [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 14 (w.e.f. 1.1.2005).].-(1) When a provisional or complete specification or any drawing accompanying it has been received by the applicant or his agent for amendment, and amendment is duly made thereon, the page incorporating such amendment shall be retyped and submitted to form a continuous document. Amendments shall not be made by slips pasted on, or as footnotes or by writing in the margin of any of the said documents.(2) The amended documents shall be returned to the Controller together with the superseded pages or drawings, if any, duly marked, cancelled and initialed by the applicant or his agent. Copies of any pages that have been retyped or added and of any drawing that has been added or substantially amended shall be sent in duplicate.]

15. Drawings

.-(1) Drawings, when furnished under section 10 by the applicants otherwise than on requisition made by the Controller, shall accompany the specifications to which they relate.(2)No drawings or sketch, which would require a special illustration of the specification, shall appear in the specification itself.(3)At least one copy of the drawing shall be prepared neatly and clearly on a durable paper sheet.(4)Drawings shall be on standard A-4 size sheets with a clear margin of at least 4 cm on the top and left hand and 3 cm at the bottom and right hand of every sheet.(5)Drawings shall be on a scale sufficiently large to show the inventions clearly and dimensions shall not be marked on the drawings.(6)Drawing shall be sequentially or systematically numbered and shall bear-(i)in the left hand top corner, the name of the applicant;(ii)in the right hand top corner, the number of the sheets of drawings, and the consecutive number of each sheet; and(iii)in the right hand bottom corner, the signature of the applicant or his agent.(7)No descriptive matter shall appear on the drawings except in the flow diagrams.

16. Models

.-Models or samples shall be furnished under section 10 only when required by the Controller.

Chapter III
International Applications Under Patent Cooperation Treaty (Pct)

17. Definitions

.-In this Chapter, unless the context otherwise requires,-(a)"Article" means an Article of the Treaty;(b)"Treaty" or "PCT" means the Patent Cooperation Treaty;(c)All other words and expressions used herein and not defined but defined in the PCT shall have the same meaning as assigned to them in that Treaty.

18. Appropriate office in relation to international applications

.-(1) The receiving office, designated office and elected office for the purposes of international applications filed under the Treaty shall be the appropriate office in accordance with rule 4.(2)The head office of the patent office shall be the appropriate office for dealing with the International Bureau of the World Intellectual Property Organisation, International Searching Authorities and International Preliminary Examining Authorities.(3)An international application under the Treaty shall be filed at and processed by the appropriate office in accordance with the provisions of this Chapter, the Treaty and the regulations established under the PCT.(4)Notwithstanding anything contained in sub-rule (2), on receipt of an international application, the appropriate office shall transmit one copy as record copy of such application to International Bureau of the World Intellectual Property Organisation and another copy as search copy to Competent International Searching Authority. The appropriate office shall simultaneously furnish complete details of such application to the head office of the patent offices.

19. International applications filed with appropriate office as receiving office

.- [(1) An international application shall be filed with the appropriate office in triplicate either in English or in Hindi language.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (1) (w.e.f. 1.1.2005).](2)The fees payable in respect of an international application filed with the appropriate office shall be, in addition to the fees as specified in the regulations under the Treaty, the fees as specified in the First Schedule.(3)Where an international application filed with the appropriate office has not been filed as specified under sub-rule (1) and the applicant desires that the appropriate office should prepare the additional copies required, the fee for making such copies shall be paid by the applicant.(4)On receipt of a request from the applicant and on payment of the prescribed fee by him, the appropriate office shall prepare a certified copy of the priority document and promptly transmit the same to the International Bureau of the World Intellectual Property Organisation for the purpose of an international application filed with the appropriate office with an

intimation to the applicant and the head office.

20. International applications designating or designating and electing India.

- [(1) An application corresponding to an international application filed under Patent Cooperation Treaty may be made in Form 1 under sub-section (1A) of section 7.Explanation. - For the purpose of this rule, "an application corresponding to an international application" means an international application as filed under Patent Cooperation Treaty which includes any amendments made by the applicant under Article 19 and communicated to Designated Office under Article 20 or any amendment made under sub-clause (b) of clause (2) of Article 34 of the Treaty:Provided that the applicant, while filing such application corresponding to an international application designating India, may delete a claim, in accordance with the provisions contained in rule 14.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](2)The Patent Office shall not commence processing of an application filed corresponding to international application designating India before the expiration of the time limit prescribed under [sub-rule (4)(i)] [[Substituted by S.O. 1418(E), dated 28.12.2004, for " sub-Rule (4)" (w.e.f.1.1.2005).]].(3)An applicant in respect of an international application designating India shall, before the time limit prescribed in [sub-rule (4)(i)] [Substituted by S.O. 1418(E), dated 28.12.2004, for " sub-Rule (4)" (w.e.f. 1.1.2005).],-(a)pay the prescribed national fee and other fees to the patent office in the manner prescribed under these rules and under the regulations made under the Treaty;(b)and where the international application was either not filed or has not been published in English, file with the patent office, a transaction of the application in English, duly verified by the applicant [or the person duly authorised by him] [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).] that the contents thereof are correct and complete.(4)[(i) The time limit referred to in sub-rule (2) shall be thirty one months from the priority date as referred to in Article 2(xi);(ii)Notwithstanding anything contained in clause (i), the patent office may, on the express request filed in Form 18 alongwith the fee specified in First Schedule, process or examine the application at any time before thirty one months.](5)The translation of the international application referred to in sub-rule (3) shall include a translation in English of,(i)the description;(ii)the claims as filed;(iii)any text matter of the drawings;(iv)the abstract; and(v)in case the applicant has not elected India and if the claims have been amended under Article 19, then the amended claims together with any statement filed under the said Article;(vi)in case the applicant has elected India and any amendments to the description, the claims and text matter of the drawings that are annexed to the international preliminary examination report.(6)If the applicant fails to file a translation of the amended claims and annexures referred to in sub-rule (5), even after invitation from the appropriate office to do so, within a time limit as may be fixed by that office having regard to the time left for meeting the requirements, the amended claims and annexures shall be disregarded in the course of further processing the application by the appropriate office.(7)The applicant in respect of an international application designating India shall when complying with sub rule (3), preferably use Forms set out in the Second Schedule before the appropriate office as designated office.

21. Filing of priority document

.-(1) Where the applicant in respect of an international application designating India has not complied with the requirements of paragraph (a) or paragraph (b) of rule 17.1 of the regulations under the Treaty, the applicant shall file with the patent office the priority document referred to in that rule before the expiration of the time limit referred to in sub-rule (4) of rule 20.(2)Where priority document referred to in sub-rule (1) is not in the English language, an English translation thereof duly verified by the applicant shall be filed within the time limit specified in sub-rule (4) of rule 20.(3)Where the applicant does not comply with the requirements of sub-rule (1) or sub-rule (2), the appropriate office shall invite the applicant to file the priority document or the translation thereof, as the case may be, within three months from the date of such invitation, and if the applicant fails to do so, the claim of applicant for the priority shall be disregarded for the purposes of the Act.

22. Effect of non-compliance with certain requirements

.-An international application designating India shall be deemed to be withdrawn if the applicant does not comply with the requirements of rule 20.

23. The requirements under this Chapter to be supplemental of the regulations, etc., under the Treaty

.-(1) The provisions of this Chapter shall be supplemental to the PCT and the regulation and the administrative instructions made thereunder.(2)In case of a conflict between any provisions of the rules contained in this Chapter and provisions of the Treaty and the regulations and the administrative instructions made thereunder, the provisions of the Treaty and the regulations and administrative instructions made thereunder shall apply in relation to international applications.

Chapter IV
Publication And Examination Of Applications

24. [Publication of application [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 24 (w.e.f. 1.1.2005).]

.-The period for which an application for patent shall not ordinarily be open to public under sub-section (1) of section 11-A shall be eighteen months from the date of filing of application or the date of priority of the application, whichever is earlier:] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (4) (w.e.f. 1.1.2005).][Provided that the period within which the Controller shall publish the application in the Journal shall ordinarily be one month from the date of expiry of said period, or one month from the date of request for publication under rule 24-A.] [Added by S.O. 657(E), dated 5.5.2006 (w.e.f. 5.5.2006).]

24.

-A. Request for publication.-A request for publication under sub-section (2) of section 11-A shall be made in Form 9.

24.

-B. Examination of application.-(1)(i) A request for examination under section 11-B shall be made in Form 18 [within forty-eight months] [Substituted by S.O. 657(E), dated 5.5.2006, for " after the publication of the application but within thirty-six months" (w.e.f. 5.5.2006).] from the date of priority of the application or from the date of filing of the application, whichever is earlier;(ii)[The period within which the request for examination under sub-section (3) of section 11-B to be made shall be forty-eight months from the date of priority, if applicable, or forty-eight months from the date of filing of the application; [Substituted by S.O. 657(E), dated 5.5.2006, for Clauses (ii), (iii) and (iv) (w.e.f. 5.5.2006).](iii)The request for examination under sub-section (4) of section 11-B shall be made within forty-eight months from the date of priority or from the date of filing of the application, or within six months from the date of revocation of the secrecy direction, whichever is later;(iv)The request for examination of application as filed according to the " Explanation"under sub-section (3) of section 16 shall be made within forty-eight months from the date of filing of the application or from the date of priority of the first mentioned application or within six months from the date of filing of the further application, whichever is later;](v)The period for making request for examination under section 11-B, of the applications filed before the 1st day of January, 2005 shall be [the period specified under the section 11-B before the commencement of the Patents (Amendment) Act, 2005 or] [Substituted by S.O. 657(E), dated 5.5.2006, for " the period specified under the Section 11-B or" (w.e.f. 5.5.2006).] the period specified under these rules, whichever expires later.(2)[(i) Where the request for examination has been filed under sub-rule (1) and application has been published under section 11A, the Controller shall refer the application, specification and other documents related thereto to the examiner and such reference shall be made in the order in which the request is filed:Provided that in case of a further application filed under section 16, the order of reference of such further application shall be the same as that of the first mentioned application:Provided further that in case the first mentioned application has already been referred for examination, the further application shall have to be accompanied by a request for examination, and such further application shall be published within one month and be referred to the examiner within one month from the date of such publication.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](ii)The period within which the examiner shall make the report under sub-section (2) of section 12, shall ordinarily be one month but not exceeding three months from the date of reference of the application to him by the Controller;(iii)[The period within which the Controller shall dispose off the report of the examiner shall ordinarily be one month from the date of the receipt of the such report by the Controller.] [Inserted by S.O. 657(E), dated 5.5.2006 (w.e.f. 5.5.2006).](3)[A first statement of objections, along with any documents as may be required, shall be issued by the Controller to the applicant or his authorised agent within one month from the date of disposal of the report of examiner by the Controller:Provided that where the request for examination was filed by a person interested, only an intimation of such examination may be sent to such person interested.(4)Reply to the first statement of objections and subsequent

reply, if any, shall be processed in the order in which such reply is received.(5)The time for putting an application in order for grant under section 21 shall be six months from the date on which the first statement of objections is issued to the applicant to comply with the requirements.(6)The time for putting an application in order for grant under section 21 as prescribed under sub-rule (5) may be further extended for a period of three months on a request in Form 4 for extension of time along with prescribed fee, made to the Controller before expiry of the period specified under sub-rule (5).] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

24C. [Expedited examination of applications. [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

(1)An applicant may file a request for expedited examination in Form 18A along with the fee as specified in the first schedule only by electronic transmission duly authenticated within the period prescribed in rule 24B on any of the following grounds, namely:-(a)that India has been indicated as the competent International Searching Authority or elected as an International Preliminary Examining Authority in the corresponding international application; or(b)that the applicant is a startup.(2)A request for examination filed under rule 24B may be converted to a request for expedited examination under sub-rule (1) of rule 24C by paying the relevant fees and submitting requisite documents as required under sub-rule (1).(3)Except where the application has already been published under sub-section (2) of section 11A or a request for publication under rule 24A has already been filed, a request for expedited examination shall be accompanied by a request for publication under rule 24A.(4)Where the request for expedited examination does not comply with the requirements of this rule, such a request shall be processed in accordance with the provisions contained in rule 24B, with an intimation to the applicant, and shall be deemed to have been filed on the date on which the request for expedited examination was filed.(5)The Controller shall refer the request for expedited examination along with the application and specification and other documents to the examiner, in respect of the applications where the request for expedited examination has been received, in the order of filing of such requests.Provided that a request for expedited examination under this rule filed by a startup shall not be questioned merely on the ground that the startup ceased to be a startup after having filed an application for patent due to the lapse of more than five years from the date of its incorporation or registration, or the turnover subsequently crossed the financial threshold limit, as defined.(6)The period within which the examiner shall make the report under sub-section (2) of section 12, shall ordinarily be one month but not exceeding two months from the date of reference of the application to him by the Controller.(7)The period within which the Controller shall dispose of the report of the examiner shall be one month from the date of receipt of such report by the Controller.(8)A first statement of objections along with any document, if required, shall be issued by the Controller to the applicant or his authorised agent within fifteen days from the date of disposal of the report of examiner by the Controller.(9)Reply to the first statement of objections and subsequent reply, if any, in respect of an application where the request for expedited examination was filed, shall be processed in the order in which such reply for such application is received.(10)The time for putting an application in order for grant under section 21 shall be six months from the date on which the first statement of objections is issued to the applicant.(11)The time for putting an application in order for grant under section 21, as prescribed in sub-rule (10) may be further extended for a period of three months on a request for extension

made in Form 4 along with the prescribed fee, made to the Controller before the expiry of the period specified under sub-rule (10).(12)The Controller shall dispose of the application within a period of three months from the date of receipt of the last reply to the first statement of objections or within a period of three months from the last date to put the application in order for grant under section 21 of the Act, whichever is earlier:Provided that this time limit shall not be applicable in case of pre-grant opposition.(13)Notwithstanding anything contained this rule, the Controller may limit the number of requests for expedited examination to be received during the year by way of a notice to be published in the official journal.]

25. Identification of published applications

.-Publication of application under sub-sections (2) and (5) of section 11-A shall be identified by the letter `A' alongwith the number of application.

26. Request for withdrawal

.- [A request for withdrawing the application under sub-section (4) of section 11B shall be made in Form 29.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).][* * *] [Sub-Rule (2) omitted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).]

27. [Inspection and supply of published documents [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 27 (w.e.f. 1.1.2005).]

.-After the date of publication of the application under section 11-A, the application together with the complete specification and provisional specification, if any, the drawing, if any, and the abstract filed in respect of the application may be inspected at the appropriate office by making a written request to the Controller on payment of the fee in that behalf and copies thereof may be obtained on payment of fees specified in the First Schedule.]

28. Procedure in case of anticipation by prior publication

.-(1) If the Controller is satisfied after investigation under section 13 that the invention so far as claimed in any claim of the complete specification has been published in any specification or other document referred to in clause (a) of sub-section (1) or sub-section (2) of the said section, the Controller shall communicate the gist of specific objections and the basis thereof to the applicant and the applicant shall be afforded an opportunity to amend his specification.(2)If the applicant contests any of the objections communicated to him by the Controller under sub-rule (1), or if he refiles his specification alongwith his observations as to whether or not the specification is to be amended, he shall be given an opportunity to be heard in the matter if he so requests:Provided that such request shall be made on a date earlier than ten days of the final date of the period [referred to] [Substituted by S.O. 1418(E), dated 28.12.2004, for " specified" (w.e.f. 1.1.2005).] under sub-section (1) of section 21:Provided further that a request for hearing may be allowed to be filed within such shorter period as the Controller may deem fit in the circumstances of the case.(3)If the applicant

requests for a hearing under sub-rule (2) within a period of one month from the date of communication of the gist of objections, or, the Controller, considers it desirable to do so, whether or not the applicant has refiled his application, he shall forthwith fix a date and time for hearing having regard to the period remaining for putting the application in order or to the other circumstances of the case.(4)The applicant shall be given ten days' notice of any such hearing or such shorter notice as appears to the Controller to be reasonable in the circumstances of the case and the applicant shall, as soon as possible, notify the Controller whether he will attend the hearing.(5)After hearing the applicant, or without a hearing if the applicant has not attended or has notified that he does not desire to be heard, the Controller may specify or permit such amendment of the specification as he thinks fit to be made and may refuse to [grant the patent] [Substituted by S.O. 1418(E), dated 28.12.2004, for " accept the specification" (w.e.f. 1.1.2005).] unless the amendment so specified or permitted is made within such period as may be fixed.(6)[The hearing may also be held through video-conferencing or audio-visual communication devices:Provided that such hearing shall be deemed to have taken place at the appropriate office.Explanation. - For the purposes of this rule, the expression "communication device" shall have the same meaning as assigned to it in clause (ha) of sub-section (1) of section 2 of the Information Technology Act, 2000 (21 of 2000).(7)In all cases of hearing, written submissions and the relevant documents, if any, shall be filed within fifteen days from the date of hearing.] [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).][28-A. Procedure in relation to consideration of report of examiner under section 14 [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).].-In case the applicant contests any of the objections communicated to him, the procedure specified under rule 28 may apply.]

29. Procedure in case of anticipation by prior claiming

.-(1) When it is found that the invention so far as claimed in any claim of the complete specification, is claimed in any claim of any other specification falling within clause (b) of sub-section (1) of section 13, the applicant shall be so informed and shall be afforded an opportunity to amend his specification.(2)[If the applicant's specification is otherwise in order for grant and an objection under clause (b) of sub-section (1) of section 13 is outstanding, the Controller may postpone the grant of patent and allow a period of two months for removing the objection.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (2) (w.e.f. 1.1.2005).]

30. Amendment of the complete specification in case of anticipation

.-(1) If the applicant so requests at any time, or if the Controller is satisfied that the objection has not been removed within the period referred to in sub-clause (2) of rule 29, a date for hearing the applicant shall be fixed forthwith and the applicant shall be given at least ten days' notice of the date so fixed. The applicant shall, as soon as possible, notify the Controller whether he will attend the hearing.(2)After hearing the applicant, or without a hearing if the applicant has not attended or has notified that he does not desire to be heard, the Controller may specify or permit such amendment of the specification as will be to his satisfaction to be made and may direct that reference to such other specification, as he shall mention shall be inserted in the applicant's specification unless the amendment is made or agreed to within such period as he may fix.

31. Form of reference to another specification

.-When in pursuance of rule 30, the Controller directs that a reference to another specification shall be inserted in the applicant's complete specification, such reference shall be inserted after the claims and shall be in the following form, namely:-"Reference has been directed, in pursuance of section 18(2) of the Patents Act, 1970, to the specification filed in pursuance of application No. ....."

32. Procedure in case of potential infringement

.-If in consequence of an investigation made under section 13 [* * *] [The words " or Section 25" omitted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).], it appears to the Controller that the applicant's invention cannot be performed without substantial risk of infringement of a claim of another patent, the applicant shall be so informed and the procedure provided in rule 29 shall, so far as may be necessary, be applicable.

33. Form of reference to another patent

.-Where the Controller directs that a reference to another patent shall be inserted in the applicant's complete specification under sub-section (1) of section 19, such reference shall be inserted after the claims in the following form, namely:-"Reference has been directed, in pursuance of section 19 (1) of the Patents Act, 1970, to Patent No. ....."

34. Manner in which a claim under section 20(1) shall be made

.-(1) A claim under sub-section (1) of section 20 shall be made in Form 6.(2)The original assignment or agreement or an official copy or notarized copy thereof shall also be produced for the Controller's inspection and the Controller may call for such other proof of title or written consent as he may require.

35. Manner in which a request may be made under section 20(4)

.-(1) A request under sub-section (4) of section 20 shall be made in Form 6.(2)The request shall be accompanied by proof of death of the joint applicant and a certified copy of the probate of the will of the deceased or letters of administration in respect of his estate or any other document to prove that the person who gives the consent is the legal representative of the deceased applicant.

36. Manner of application under section 20(5)

.-(1) An application under sub-section (5) of section 20 shall be made in Form 6 in duplicate and shall be accompanied by a statement setting out fully the facts upon which the applicant relies and the directions which he seeks.(2)A copy of the application and statement shall be sent by the Controller to every other joint applicant.

37. [Numbering of applications on the grant of patent [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 37 (w.e.f. 1.1.2005).]

.-On the grant of a patent, the application shall be accorded a number (called serial number) in the series of numbers accorded to patents under the][Indian Patents and Designs Act, 1911 (2 of 1911)] [Now see the Designs Act, 2000 (16 of 2000).][which shall be the number of the patent so granted.] [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 37 (w.e.f. 1.1.2005).]

38. Inspection of application, specification, etc

.-[Omitted by S.O. 1418(E), dated 28-12-2004 (w.e.f.1-1-2005).]

Chapter V
Exclusive Marketing Rights

[Chapter V containing rules 39 to 54 omitted by S.O. 1418(E), dated 28-12-2004 (w.e.f.1-1-2005).]

Chapter VI
[OPPOSITION PROCEEDINGS TO GRANT OF PATENT] [Substituted by S.O. 657(E), dated 5.5.2006, for " OPPOSITION PROCEEDINGS" (w.e.f. 5.5.2006).]

55. [] [Substituted by S.O. 1418(E), dated 28.12.2004, for Rules 55 to 57 (w.e.f. 1.1.2005).] [Opposition to the patent.] [Substituted by S.O. 657(E), dated 5.5.2006, for " Opposition by representation against the grant of patent" (w.e.f. 5.5.2006).] -

[(1) Representation for opposition under sub-section (1) of section 25 shall be filed in Form 7(A) at the appropriate office with a copy to the applicant, and shall include a statement and evidence, if any, in support of the representation and a request for hearing, if so desired.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).][(1-A) Notwithstanding anything contained in sub-rule (1), no patent shall be granted before the expiry of a period of six months from the date of publication of the application under section 11-A.] [Substituted by S.O. 657(E), dated 5.5.2006, for sub-Rule (1) (w.e.f. 5.5.2006).](2)[The Controller shall consider such representation only when a request for examination of the application has been filed.(3)[On consideration of the representation if the Controller is of the opinion that application for patent shall be refused or the complete specification requires amendment, he shall give a notice to the applicant to that effect.(4)On receiving the notice under sub-rule (3), the applicant shall, if he so desires, file his statement and evidence, if any, in support of his application within three months from the date of the notice, with a copy to the opponent.(5)On consideration of the statement and evidence filed by

the applicant, the representation including the statement and evidence filed by the opponent, submissions made by the parties, and after hearing the parties, if so requested, the Controller may either reject the representation or require the complete specification and other documents to be amended to his satisfaction before the patent is granted or refuse to grant a patent on the application, by passing a speaking order to simultaneously decide on the application and the representation ordinarily within one month from the completion of above proceedings.] [Substituted by S.O. 1418(E), dated 28.12.2004, for Rules 55 to 57 (w.e.f. 1.1.2005).][* * *] [Omitted '(6) After considering the representation and submission made during the hearing if so requested, the Controller shall proceed further simultaneously either rejecting the representation and granting the patent or accepting the representation and refusing the grant of patent on that application, ordinarily, within one month from the completion of above proceedings.' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).][55-A. Filing of notice of opposition [Substituted by S.O. 1418(E), dated 28.12.2004, for Rules 55 to 57 (w.e.f. 1.1.2005).].-The notice of opposition to be given under][sub-section (2) of section 25] [Substituted by S.O. 657(E), dated 5.5.2006, for " sub-Section (3) of Section 25" (w.e.f. 5.5.2006).][shall be made in Form 7 and sent to the Controller in duplicate at the appropriate office.

56. Constitution of Opposition Board and its proceeding

.-(1) On receipt of] [Substituted by S.O. 1418(E), dated 28.12.2004, for Rules 55 to 57 (w.e.f. 1.1.2005).][notice of opposition under rule 55-A] [Substituted by S.O. 657(E), dated 5.5.2006, for " notice of opposition" (w.e.f. 5.5.2006).][, the Controller shall, by order, constitute an Opposition Board consisting of three members and nominate one of the members as the Chairman of the Board.(2)An examiner appointed under sub-section (2) of section 73 shall be eligible to be a member of the Opposition Board.(3)The examiner, who has dealt with the application for patent during the proceeding for grant of patent thereon, shall not be eligible as member of Opposition Board as specified in sub-rule (2) for that application.(4)The Opposition Board shall conduct the examination of the notice of opposition alongwith documents filed under rules 57 to 60 referred to under] [Substituted by S.O. 1418(E), dated 28.12.2004, for Rules 55 to 57 (w.e.f. 1.1.2005).][sub-section (3) of section 25] [Substituted by S.O. 657(E), dated 5.5.2006, for " sub-Section (4) of Section 25" (w.e.f. 5.5.2006).][, submit a report with reasons on each ground taken in the notice of opposition with its joint recommendation within three months from the date on which the documents were forwarded to them.

57. Filing of written statement of opposition and evidence

.-The opponent shall send a written statement in duplicate setting out the nature of the opponent's interest, the facts upon which he bases his case and relief which he seeks and evidence, if any, alongwith notice of opposition and shall deliver to the patentee a copy of the statement and the evidence, if any.] [Substituted by S.O. 1418(E), dated 28.12.2004, for Rules 55 to 57 (w.e.f. 1.1.2005).]

58. Filing of reply statement and evidence

.-(1) If the [patentee] [Substituted by S.O. 1418(E), dated 28.12.2004, for " applicant" (w.e.f. 1.1.2005).] desires to contest the opposition, he shall leave at the appropriate office a reply statement setting out fully the grounds upon which the opposition is contested and evidence, if any, in support of his case within a period of two months from the date of receipt of the copy of the written statement and opponent's evidence, if any, by him under rule 57 and deliver to the opponent a copy thereof.(2)[If the patentee does not desire to contest or leave his reply and evidence within the period as specified in sub-rule (1), the patent shall be deemed to have been abandoned.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (2) (w.e.f. 1.1.2005).]

59. Filing of reply evidence by opponent

.-The opponent may, within one month from the date of delivery to him of a copy of the [patentee's] [Substituted by S.O. 1418(E), dated 28.12.2004, for " applicant's" (w.e.f. 1.1.2005).] reply statement and evidence under rule 58, leave at the appropriate office evidence in reply strictly confined to matters in the [patentee's] [Substituted by S.O. 1418(E), dated 28.12.2004, for " applicant's" (w.e.f. 1.1.2005).] evidence and shall deliver to the [patentee] [Substituted by S.O. 1418(E), dated 28.12.2004, for " applicant" (w.e.f. 1.1.2005).] a copy of such evidence.

60. Further evidence to be left with the leave of the Controller

.-No further evidence shall be delivered by either party except with the leave or directions of the Controller:Provided that such leave or direction is prayed before the Controller has fixed the hearing under rule 62.

61. Copies of documents to be supplied

.-(1) Copies of all documents referred to in the notice of opposition or in any statement or evidence filed in connection with the opposition and authenticated to the satisfaction of the Controller, shall be simultaneously furnished in duplicate unless the Controller otherwise directs.(2)Where a specification or other document in a language other than English is referred to in the notice, statement or evidence, an attested translation thereof, in duplicate, in English shall be furnished alongwith such notice, statement or evidence, as the case may be.

62. Hearing

.- [(1) On the completion of the presentation of evidence, if any, and on receiving the recommendation of Opposition Board or at such other time as the Controller may think fit, he shall fix a date and time for the hearing of the opposition and shall give the parties not less than ten days' notice of such hearing and may require members of Opposition Board to be present in the hearing.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (1) (w.e.f. 1.1.2005).](2)If either party to the proceeding desires to be heard, he shall inform the Controller by a notice alongwith the fee as

specified in the First Schedule.(3)The Controller may refuse to hear any party who has not given notice under sub-rule (2).(4)If either party intends to rely on any publication at the hearing not already mentioned in the notice, statement or evidence, he shall give to the other party and to the Controller not less than five days' notice of his intention, together with details of such publication.(5)[After hearing the party or parties desirous of being heard, or if neither party desires to be heard, then without a hearing, and after taking into consideration the recommendation of Opposition Board, the Controller shall decide the opposition and notify his decision to the parties giving reasons therefor.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (5) (w.e.f. 1.1.2005).]

63. [Determination of costs [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 63 (w.e.f. 1.1.2005).]

.-If the patentee notifies the Controller that he desires to withdraw the patent after notice of opposition is given, the Controller, depending on the merits of the case, may decide whether costs should be awarded to the opponent.][63-A. Request made under section 26(1) [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).].-Request under section 26(1) shall be made on Form 12 within three months from the date of the order of the Controller and shall be accompanied by a statement setting out the facts upon which the petitioner relies and relief he claims.]

64. Time within which complete specification is to be amended under section 27

.-[Omitted by S.O. 1418(E), dated 28-12-2004 (w.e.f.1-1-2005).]

65. Procedure to be followed

.-[Omitted by S.O. 1418(E), dated 28-12-2004 (w.e.f.1-1-2005).]

66. Form of making a request under section 28(2)

.-A request under sub-section (2) of section 28 shall be made in Form 8.

67. Form of making a claim under section 28(3)

.-(1) A claim under sub-section (3) of section 28 shall be made in Form 8, and shall be accompanied by a statement setting out the circumstances under which the claim is made.(2)A copy of the claim and the statement shall be sent by the Controller to every applicant for the patent (not being the claimant) and to any other person whom the Controller may consider to be interested.

68. Form of application to be made under section 28(7)

.-(1) An application under sub-section (7) of section 28 shall be made in Form 8 and shall be accompanied by a statement setting out the circumstances under which the application is made.(2)A copy of the application and the statement shall be sent by the Controller to each patentee or the applicant for patent, as the case may be, and to any other person whom the Controller may consider to be interested.

69. [Procedure for the hearing of claim or an application under section 28 [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 69 (w.e.f. 1.1.2005).]

.-The procedure specified in rules 55-A and 57 to 63 relating to the filing of notice of opposition, written statement, reply statement, leaving evidence, hearing and cost shall, so far as may be, apply to the hearing of a claim or an application under section 28 as they apply to the opposition proceedings subject to the modification that reference to patentee shall be construed as the person making the claim, or an application, as the case may be.]

70. Mention of inventor

.-Any mention of the inventor under sub-section (1) of section 28 shall be made in the relevant documents in the following form, namely:-"The inventor of this invention/substantial part of this invention within the meaning of section 28 of the Patents Act, 1970, is .....of.....".

Chapter VII
Secrecy Directions

71. [Permission for making patent application outside India under section 39 [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 71 (w.e.f. 1.1.2005).]

.-(1) The request for permission for making patent application outside India shall be made in Form 25.](2)[The Controller shall dispose of the request made under sub-rule (1) within a period of twenty-one days from the date of filing of such request:Provided that in case of inventions relating to defence or atomic energy, the period of twenty-one days shall be counted from the date of receipt of consent from the Central Government.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

72. Communication of result of reconsideration under section 36(2)

.-(1) The result of every reconsideration under sub-section (1) of section 36 shall be communicated to the applicant for patent within fifteen days of the receipt of the notice by the Controller.(2)Extension of time on revocation of secrecy directions under section 38.-The extension

of time to be given for doing anything required or authorised to be done under section 38 shall not exceed the period for which directions given by the Central Government under sub-section (1) of section 35 were in force.

Chapter VIII
[GRANT OF PATENTS] [Substituted by S.O. 1418(E), dated 28.12.2004, for " SEALING OF PATENTS" (w.e.f. 1.1.2005).]

73. Sealing of patents

.-[Omitted by S.O. 1418(E), dated 28-12-2004 (w.e.f. 1-1-2005).]

74. [Form of patent [Substituted by S.O. 657(E), dated 5.5.2006, for Rule 74 (w.e.f. 5.5.2006).]

.-(1) A patent shall be in the form as specified in the Third Schedule with such modifications as the circumstances of each case may require and shall bear the number accorded to the application under rule 37.(2)The patent certificate shall ordinarily be issued within seven days from the date of grant of patent under section 43.][74-A. Inspection of documents related to grant of patent [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).].-After the date of publication of a grant of a patent, the application together with the complete specification and provisional specification, if any, the drawing, if any, abstract and other documents related thereto may be inspected at the appropriate office by making a written request to the Controller and on payment of fee and may obtain copies on payment of fee specified in the First Schedule.]

75. Amendment of patent under section 44

.-An application under section 44 for the amendment of a patent shall be made in Form 10 alongwith substantiating evidence and be accompanied by the patent.

76. Manner of applying for direction under section 51(1)

.-(1) An application for directions under sub-section (1) of section 51 shall be made in Form 11 and shall be accompanied by a statement setting out the facts upon which the applicant relies.(2)A copy of the application and of the statement shall be sent by the Controller to every other person registered as grantee or proprietor of the patent.

77. Manner of application under section 51(2)

.-(1) An application for directions under sub-section (2) of section 51 shall be made in Form 11 and shall be accompanied by a statement setting out the facts upon which the applicant relies.(2)A copy of the application and statement shall be sent by the Controller to the person in default.

78. [Procedure for the hearing of proceedings under section 51 [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 78 (w.e.f. 1.1.2005).]

.-The procedure specified in rules 55-A and 57 to 63 relating to the filing of notice of opposition, written statement, reply statement, leaving evidence, hearing and costs shall, so far as may be, apply to the hearing of an application under section 51 as they apply to the hearing of an opposition proceeding.]

79. Request under section 52(2)

.-(1) A request under sub-section (2) of section 52 shall be made in Form 12 within three months from the date of the order of the [Appellate Board or] [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).] Court referred to in sub-section (1) of the said section and shall be accompanied by a statement setting out the facts upon which the petitioner relies and the relief he claims and a certified copy of the order of the [Appellate Board or] [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).] Court.(2)Where the [Appellate Board or] [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).] Court has ordered the grant of patent to the applicant only for a part of the invention, the new patent granted shall be accorded a number in the same series of numbers accorded to the complete specifications accepted on the same day as the patent is granted.

80. Renewal fees under section 53

.-(1) To keep a patent in force, the renewal fees specified in the First Schedule shall be payable at the expiration of the second year from the date of the patent or of any succeeding year and the same shall be remitted to the patent office before the expiration of the second or the succeeding year.[(1-A) The period for payment of renewal fees so specified in sub-rule (1) may be extended to such period not being more than six months if the request for such extension of time is made in Form 4 with the fee specified in the First Schedule.] [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).](2)While paying the renewal fee, the number and date of the patent concerned and the year in respect of which the fee is paid shall be quoted.(3)The annual renewal fees payable in respect of two or more years may be paid in advance.(4)The Controller shall, after making such enquiry as he may deem necessary, credit any renewal fee and issue a certificate that the fee has been paid.

Chapter IX
Amendment Of Application, Specification Or Any Document Relating Thereto

81. Amendment of application, specification or any document relating thereto

.-(1) An application under section 57 for the amendment of an application for a patent or a complete specification or any document related thereto shall be made in Form 13.(2)If the application for

amendment under sub-rule (l) relates to an application for a patent which has not been [granted] [[Substituted by S.O. 1418(E), dated 28.12.2004, for " accepted" (w.e.f.1.1.2005).]], the Controller shall determine whether and subject to what conditions, if any, the amendment shall be allowed.(3)[(a) If the application for amendment under sub-rule (1) is made after grant of patent and the nature of the proposed amendment is substantive, the application shall be published. [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (3) (w.e.f. 1.1.2005).](b)Any person interested in opposing the application for amendment shall give a notice of opposition in Form 14 within three months from the date of publication of the application.(c)The procedure specified in rules 57 to 63 relating to the filing of written statement, reply statement, leaving evidence, hearing and costs shall, so far as may be, apply to the hearing of the opposition under section 57 as they apply to the hearing of an opposition proceeding.]

82. Preparation of amended specifications, etc

.-Where the Controller allows the application for a patent or the complete specification or any other document to be amended, the applicant shall, if the Controller so requires and within the time to be specified by him, leave at the appropriate office an amended application or the specification or the other document, as the case may be, in accordance with the provisions of these rules.

83. [Publication of the amendment allowed [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 83 (w.e.f. 1.1.2005).]

.-The amendments allowed after a patent has been granted, shall be published.]

Chapter X
Restoration Of Patents

84. Restoration of patents

.-(1) An application for the restoration of a patent under section 60 shall be made in Form 15.(2)Where the Controller is satisfied that a prima facie case for the restoration of any patent has not been made out, he shall intimate the applicant accordingly and unless the applicant makes a request to be heard in the matter within one month from the date of such intimation the Controller shall refuse the application.(3)[Where applicant requests for a hearing within the time allowed and the Controller, after giving the applicant such a hearing, is prima facie satisfied that the failure to pay the renewal fees was unintentional, he shall publish the application.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (3) (w.e.f. 1.1.2005).]

85. [Opposition to restoration under section 61 [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 85 (w.e.f. 1.1.2005).]

.-(1) At any time, within two months from the date of publication of the application under sub-rule (3) of rule 84, any person interested may give notice of opposition thereto in Form 14.(2)A copy of the notice of opposition shall be sent by the Controller to the applicant.(3)The procedure specified in rules 57 to 63 relating to the filing of written statement, reply statement, leaving evidence, hearing and costs shall, so far as may be, apply to the hearing of the opposition under section 60 as they apply to the hearing in the opposition proceeding.]

86. Payment of unpaid renewal fees

.-(1) Where the Controller decides in favour of the applicant, the applicant shall pay the unpaid renewal fees and the additional fee specified in the First Schedule, within a month from the date of the order of the Controller allowing the application for restoration.(2)[The Controller shall publish his decision.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (2) (w.e.f. 1.1.2005).]

Chapter XI
Surrender Of Patents

87. [Surrender of patents [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 87 (w.e.f. 1.1.2005).]

.-(1) The Controller shall publish the notice of an offer given under section 63.(2)Any person interested may, within three months from the date of publication of the notice, give notice of opposition to the Controller in Form 14 in duplicate.(3)The procedure specified in rules 57 to 63 relating to the filing of written statement, reply statement, leaving evidence, hearing and costs shall, so far as may be, apply to the hearing of the opposition under section 63 as they apply to the hearing in opposition proceeding.(4)If the Controller accepts the patentee's offer to surrender the patent, he may direct the patentee to return the patent, and on receipt of such patent, the Controller shall by order revoke it and publish the revocation of the patent.]

Chapter XII
Register Of Patents

88. Register of patents under section 67

.-(1) Upon the [grant] [Substituted by S.O. 657(E), dated 5.5.2006, for " sealing" (w.e.f. 5.5.2006).] of a patent, the Controller shall enter in the register of patents at each appropriate office, the name, address and nationality of the grantee as the patentee thereof, the title of the invention (including the categories to which the invention relates), the date of the patent and the date of [grant] [Substituted by S.O. 657(E), dated 5.5.2006, for " sealing" (w.e.f. 5.5.2006).] thereof together with the address for service of the patentee.(2)The Controller shall also enter in the register of patents particulars regarding proceedings under the Act before the [Controller or Appellate Board or the Courts] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Controller or the Courts" (w.e.f.

1.1.2005).] in respect of every patent.(3)Where the register of patents or any part thereof is in computer floppies, diskettes or any other electronic form it shall be maintained and accessed only by the person who is duly authorised by the Controller and no entry or alteration of any entry or rectification of any entry in the said register shall be made by any person who is not so authorised by the Controller.

89. Registration of documents under section 68

.-[Omitted by S.O. 1418(E), dated 28-12-2004 (w.e.f.1-1-2005).]

90. Registration of title and interest in patents

.-(1) An application referred to in sub-section (1) or sub-section (2) of section 69 shall be made in [Form 16] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 17" (w.e.f. 1.1.2005).].(2)An application for an entry in the register of patents of any other document purporting to affect the proprietorship of the patent by the person benefiting under the document shall be made in [Form 16] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 17" (w.e.f. 1.1.2005).].

91. Presentation of assignment, etc., of patent to Controller

.-Every assignment and every other document giving effect to or being evidence of the transfer of a patent or affecting the proprietorship thereof or creating an interest therein as claimed in such application, shall, unless the Controller otherwise directs, be presented to him together with the application which shall be accompanied by two copies of the assignment or other document certified to be true copies by the applicant or his agent and the Controller may call for such other proof of title or written consent as he may require.

92. Registration of title or interest in a patent

.-After the receipt of an application under sub-section (1) or sub-section (2) of section 69, the Controller shall register the title of the person concerned or his interest in a patent, as the case may be, and an entry in the following form shall be made in the register, namely:-

"In pursuance of an application received on the			
registered as	Proprietor licensee	by virtue of	Assignment licence
	Mortgage, etc.		Mortgage deed, etc.
dated		and made between	
	of the one part		of the

and

Other part".

93. Entry of renewal fee

.- [Upon receipt of the payment of the prescribed renewal fee in respect of a patent, the Controller shall enter in the register of patents the fact that the fee has been paid and the date of payment of such fee and issue a certificate of renewal of the patent.] [Substituted 'Upon receipt of the payment of the prescribed renewal fee in respect of a patent, the Controller shall enter in the register of patents the fact that the fee has been paid and the date of payment of such fee and issue a certificate of the payment.' by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

94. Alteration of address

.-(1) A patentee may make a request in writing alongwith fee payable to the Controller for the alteration of his name, nationality, address or address for service as entered in the register of patents in respect of any patent granted to him. The Controller may require such proof of the alteration as he may think fit before acting on a request to alter the name or nationality.(2)If the Controller allows a request made under sub-rule (1), he shall cause the entries in the register to be altered accordingly.(3)If a patentee makes a request in writing alongwith fee payable for entering an additional address for service in India and if the Controller is satisfied that the request should be allowed, he shall have the additional address for service entered in the register.

95. Inspection of register of patents under section 72 and fees payable therefor

.-(1) The register of patents shall be open for public inspection during office hours on payment of the fees specified therefor in the First Schedule.(2)When register of patents or any part thereof is in computer floppies, diskettes or any other electronic form the person authorised by the Controller under sub-rule (3) of rule 88 shall provide access to the computer floppies, diskettes or other electronic form or printouts of the records thereof.

Chapter XIII
Compulsory Licence And Revocation Of Patent

96. [Application for compulsory licence, etc [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 96 (w.e.f. 1.1.2005).]

.-An application to the Controller for an order under section 84, section 85, section 91 or section 92 or section 92-A shall be in Form 17, or Form 19, as the case may be. Except in the case of an application made by the Central Government, the application shall set out the nature of the applicant's interest and terms and conditions of the licence the applicant is willing to accept.]

97. When a prima facie case is not made out

.-(1) If, upon consideration of the evidence, the Controller is satisfied that a prima facie case has not been made out for the making of an order under any of the sections referred to in rule 96, he shall notify the applicant accordingly, and unless the applicant, requests to be heard in the matter, within one month from the date of such notification, the Controller shall refuse the application.(2)If the applicant requests for a hearing within the time allowed under sub-rule (1), the Controller shall, after giving the applicant an opportunity of being heard, determine whether the application may be proceeded with or whether it shall be refused.

98. Notice of opposition under section 87(2)

.-(1) A notice of opposition under sub-section (2) of section 87 shall be given in Form 14 and shall be sent to the Controller within two months from the date of the [publication] [Substituted by S.O. 1418(E), dated 28.12.2004, for " advertisement" (w.e.f. 1.1.2005).] of the application under sub-section (1) of the said section.(2)The notice of opposition referred to in sub-rule (1) shall include the terms and conditions of the licence, if any, the opponent is prepared to grant to the applicant and shall be accompanied by evidence in support of the opposition.(3)The opponent shall serve a copy of his notice of opposition and evidence on the applicant and notify the Controller when such service has been effected.(4)No further statement or evidence shall be delivered by either party except with the leave of or on requisition by the Controller.(5)The Controller shall forthwith fix a date and time for the hearing of the case and shall give the parties not less than ten days' notice of such hearing.(6)The procedure specified in sub-rules (2) to (5) of rule 62, shall, so far as may be, apply to the procedure for hearing under this rule as they apply to the hearing [in opposition proceedings] [Substituted by S.O. 1418(E), dated 28.12.2004, for " of opposition to the grant of patents" (w.e.f. 1.1.2005).].

99. [Manner of publication of the revocation order [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 99 (w.e.f. 1.1.2005).]

.-The Controller shall publish the order made by him under sub-section (3) of section 85 revoking a patent.]

100. Application under section 88(4)

.-(1) An application under sub-section (4) of section 88 for the revision of the terms and conditions of a licence which have been settled by the Controller shall be in [Form 20] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 21" (w.e.f. 1.1.2005).] and shall state the facts relied upon by the applicant and the relief he seeks and shall be accompanied by evidence in support of the application.(2)If the Controller is satisfied that a prime facie case has not been made out for the revision of the terms and conditions of the licence, he may notify the applicant accordingly and unless within a month the applicant requests to be heard in the matter, the Controller may refuse the application.(3)The Controller, after giving the applicant an opportunity of being heard, shall

determine whether the application shall be proceeded with or whether the application shall be refused.

101. Procedure to be followed in case of applications under section 88(4)

.-(1) If the Controller allows the application to be proceeded with, he shall direct the applicant to serve copies of the application and of the evidence in support thereof upon the patentee or any other person appearing in the register to be interested in the patent or upon any other person on whom, in his opinion such copies should be so served.(2)The applicant shall inform the Controller the date on which the service of copies of application and of the evidence on the patentee and other persons referred to in sub-rule (1) has been effected.(3)The patentee or any other person on whom copies of the application and of the evidence have been served, may give to the Controller notice of opposition in Form 14 within one month from the date of such service. Such notice shall contain the grounds relied upon by the opponent and shall be accompanied by evidence in support of the opposition.(4)The opponent shall serve copies of the notice of opposition and his evidence on the applicant and inform the Controller the date on which such service has been effected.(5)No further evidence or statement shall be filed by either party except with special leave of or on requisition by the Controller.(6)On completion of the above proceedings, the Controller shall forthwith fix a date and the time for the hearing of the case and shall give the parties not less than ten day's notice of such hearing.(7)The procedure specified in sub-rules (2) to (5) of rule 62 shall, so far as may be, apply to the procedure for hearing under this rule as they apply to the hearing [in opposition proceedings] [Substituted by S.O. 1418(E), dated 28.12.2004, for " of opposition to the grant of patents" (w.e.f. 1.1.2005).].(8)If the Controller decides to revise the terms and conditions of licence he shall forthwith amend the licence granted to the applicant in such manner, as he may deem necessary.

102. Application for termination of compulsory licence under section 94

.-(1) An application for termination of compulsory licence under section 94(1) shall be made in [Form 21] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 22" (w.e.f. 1.1.2005).] by the patentee or any other person deriving title or interest in the patent. The application shall be accompanied by the evidence in support of the application.(2)The applicant shall serve a copy of the application and evidence on the holder of the compulsory licence and shall inform the Controller the date on which the service has been effected.(3)The holder of the compulsory licence may file his objection alongwith evidence, if any, to the application within one month from the date of receipt of the application and evidence by him to the Controller and serve a copy thereof to the applicant.(4)No further evidence or statement shall be filed by either party except with special leave of or on requisition by the Controller.(5)On completion of the above proceedings, the Controller shall forthwith fix a date and the time for the hearing of the case and shall give the parties not less than ten day's notice of such hearing.(6)The procedure specified in sub-rules (2) to (5) of rule 62 so far as may be, apply to the procedure for hearing under this rule as they apply to the hearing [in opposition proceedings] [Substituted by S.O. 1418(E), dated 28.12.2004, for " of opposition to the grant of patent" (w.e.f. 1.1.2005).].(7)If the Controller decides to terminate the compulsory licence he shall forthwith issue an order giving terms and conditions, if any, of such termination and serve

copies of the order to both the parties.

Chapter XIV
Scientific Advisers

103. Roll of scientific advisers

.-(1) The Controller shall maintain a roll of scientific advisers for the purpose of section 115. The roll shall be updated annually. The roll shall contain the [names, addresses, specimen signatures and photographs] [Substituted by S.O. 1418(E), dated 28.12.2004, for " name and addresses" (w.e.f. 1.1.2005).]of scientific advisers, their designations, information regarding their educational qualifications, the disciplines of their specialisation and their technical, practical and research experience.(2)A person shall be qualified to have his name entered in the roll of scientific advisers, if he-(i)holds a degree in science, engineering, technology or equivalent;(ii)[has at least fifteen years' technical, practical or research experience; and] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](iii)he holds or has held a responsible post in a scientific or technical department of the Central or State Government or in any organisation.

103A. [Disqualifications for inclusion in the roll of scientific advisers. [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

- A person shall not be eligible to be included in the roll of scientific advisors, if he-(i)has been adjudged by a competent court to be of unsound mind;(ii)is an undischarged insolvent;(iii)being a discharged insolvent, has not obtained from the court a certificate to the effect that his insolvency was caused by misfortune without any misconduct on his part;(iv)has been convicted by a competent court, whether within or outside India of an offence to undergo a term of imprisonment, unless the offence of which he has been convicted has been pardoned or unless on an application made by him, the Central Government has, by order in this behalf, removed the disability; or(v)has been guilty of professional misconduct.]

104. Manner of application for inclusion in the roll of scientific advisers

. - [Any interested person may apply to the Controller for inclusion of his name in the roll of scientific advisers by furnishing his bio-data.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

105. Inclusion of the name of any other person in the roll of scientific advisers

.-The Controller may, notwithstanding anything contained in rules 103 and 104, enter the name of any person in the roll of scientific advisers, if he is of the opinion after such inquiry as he deems fit, that such person should be entered in the roll of scientific advisers.

106. Power to relax

.-Where the Controller is of the opinion that it is necessary or expedient so to do, he may, by order, for reasons to be recorded in writing, relax any of the qualifications specified in sub-rule (2) of rule 103 with respect to any person, if such person is otherwise well qualified.

107. Removal of names from the roll of scientific advisers

.-The Controller may remove the name of any person from the roll of scientific advisers, if-(a)such person makes a request for such removal; or(b)the Controller is satisfied that his name has been entered in the roll by error or on account of misrepresentation or suppression of any material fact; or(c)[such person has been convicted of an offence and sentenced to a term of imprisonment or has been guilty of misconduct in his professional capacity and the Controller is of the opinion that his name should be removed from the roll; or [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](d)such person is dead:Provided that except in the cases falling under clause (a) and (d) above, before removing the name of any person from the roll of scientific advisers under this rule, such person shall be given a reasonable opportunity of being heard.]

Chapter XV
Patent Agents

108. Particulars to be contained in the register of patent agents

.- [(1) The register of patent agents maintained under section 125 shall contain the name, nationality, address of the principal place of business, addresses of branch offices, if any, the qualifications, the date of registration of every registered patent agent and the details of their renewal of registration and any other particulars so specified by the Controller.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](2)Where the register of patent agents is in computer floppies, diskettes or any other electronic form, it shall be maintained and accessed only by the person who is duly authorised by the Controller and no entry or alteration of any entry or rectification of any entry in the said register shall be made by any person who is not so authorised by the Controller.(3)[(i) Copies of register of patent agents shall be maintained in each of the branch offices;(ii)The register of patent agents shall also contain specimen signatures and photographs of the persons registered as patent agents.]

109. Application for registration of patent agents

.-(1) Every person who desires to be registered as a patent agent shall make an application in [Form 22] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 23" (w.e.f. 1.1.2005).].(2)The applicant shall furnish such other information as may be required by the Controller.(3)[A person desirous to appear in the qualifying examination under rule 110 shall make a request to the Controller along with the fee specified in the First Schedule after announcement of such

examination and within the period as may be specified in the announcement.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

110. Particulars of the qualifying examination for patent agents

.-(1) The qualifying examination referred to in clause (c)(ii) of sub-section (1) of section 126 shall consist of a written test and a viva voce examination.(2)The qualifying examination shall consist of the following papers and marks, namely:-

Paper I	Patents Act and Rules	100
Paper II	Drafting and interpretation of patent specifications and other documents	100
	Viva Voca	100

(3)[The qualifying marks for each written paper and for the viva voce examination shall be fifty per cent"> (3) The qualifying marks for each written paper and for the viva voce examination shall be fifty per cent. each, of total marks and a candidate shall be declared to have passed the examination only if he obtains an aggregate of sixty per cent. of the total marks.] [Substituted by S.O. 1418(E), dated 28.12.2004, for sub-Rule (3) (w.e.f. 1.1.2005).]

111. Registration of patent agents

.-After a candidate passes the qualifying examination specified in rule 110 and after obtaining any further information which the Controller considers necessary he shall, on receipt of the fee specified therefor in the First Schedule, enter the candidate's name in the register of patent agents and issue to him a certificate of registration as a patent agent.[111-A. Issue of duplicate certificate of patent agents [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).].-The Controller may issue a duplicate certificate of registration as patent agent on a request made by the person so registered as patent agent alongwith fee specified in the First Schedule and contain a statement setting out the circumstances in which the original certificate issued under rule 111 was lost, destroyed and cannot be produced.] [Inserted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).]

112. Details to be included in an application for the registration of a patent agent

.-An application by a person entitled to be registered as a patent agent under sub-section (2) of section 126 shall also be made in [Form 22] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 23" (w.e.f. 1.1.2005).].

113. Registration of patent agents under section 126(2)

.-On receipt of an application for the registration of a person as a patent agent under rule 112, the Controller may if he is satisfied that the said person fulfils the conditions specified in sub-section (2)

of section 126 enter his name in the register of patent agents.

114. Disqualifications for registration as a patent agent

.-A person shall not be eligible to be registered as a patent agent, if he-(i)has been adjudged by a competent Court to be of unsound mind;(ii)is an undischarged insolvent;(iii)being a discharged insolvent, has not obtained from the Court a certificate to the effect that his insolvency was caused by misfortune without any misconduct on his part;(iv)has been convicted by a competent Court, whether within or outside India of an offence to undergo a term of imprisonment, unless the offence of which he has been convicted has been pardoned or unless on an application made by him, the Central Government has, by order in this behalf, removed the disability;(v)being a legal practitioner has been guilty of professional misconduct; or(vi)being a chartered accountant, has been guilty of negligence or misconduct.

115. Payment of fees

.-The continuance of a person's name in the register of patent agents shall be subject to the payment of the fees specified therefor in the First Schedule.

116. Removal of a name from the register of patent agents

.-(1) The Controller may delete from the register of patent agents, the name of any patent agent-(a)from whom a request has been received to that effect; or(b)when he is dead; or(c)when the Controller has removed the name of a person under sub-section (1) of section 130; or(d)[if he has defaulted in the payment of fees specified in rule 115, by more than three months after they are due; or [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](e)if he ceases to be a citizen of India:Provided that except under clause (a) and (b), before removing the name of any person from the register of patent agents under this rule, such person shall be given a reasonable opportunity of being heard.](2)The removal of the name of any person from the register of patent agents [shall be published] [Substituted by S.O. 1418(E), dated 28.12.2004, for " shall be noticed in the Official Gazette" (w.e.f. 1.1.2005).] and shall be, where relevant forthwith communicated to the person concerned.

117. Restoration of name of persons removed from the register of patent agents

.-(1) An application for the restoration of the name of any person removed from the register of patent agents under sub-section (2) of section 130 shall be made in [Form 23] [[Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 24" (w.e.f.1.1.2005).]] within two months from the date of such removal.(2)If the name of a person is restored to the register of patent agents, his name shall be continued therein for a period of one year from the date on which his last annual fee became due.(3)[The restoration of a name to the register of patent agents shall be communicated to the patent agent and also published on the official website.] [Substituted by Notification No. G.S.R.

523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

118. Alteration of names, etc., in the register of patent agents

.- [(1) A patent agent may apply for the alteration of his name, address of the principal place of business and branch offices, if any, or the qualifications entered in the register of patent agents, e-mail address, telephone number, fax number or any other particulars under sub-section (1) of section 125. On receipt of such application and the fee specified therefor in the First Schedule for such request for alteration of particulars, the Controller shall cause the necessary alterations to be made in the register of patent agents.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](2)Every alteration made in the register of patent agents [shall be published] [Substituted by S.O. 1418(E), dated 28.12.2004, for " shall be noticed in the Official Gazette" (w.e.f. 1.1.2005).].

119. Refusal to recognise as patent agent

.-If the Controller is of the opinion that any person should not be recognised as a patent agent in respect of any business under the Act as provided in sub-section (1) of section 131 thereof, he shall communicate his reasons to that person and direct him to show cause why he should not refuse to recognise him as such agent, within such time as he may allow, and after considering the reply, if any, of that person and giving him an opportunity of being heard, the Controller may pass such orders as he may deem fit.

120. Publication of the names of patent agents, registered under the Act

.-The names and addresses of persons registered as patent agents shall from time to time be published [* * *] [The words " in the Official Gazette, and in such other manner as the Controller may deem fit" omitted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).].

Chapter XVI
Miscellaneous

121. [Period within which copies of specification, etc., are to be filed [Substituted by S.O. 1418(E), dated 28.12.2004, for 121 (w.e.f. 1.1.2005).]

.-The period within which copies of specification or corresponding documents to be filed by the applicant under sub-section (1) of section 138 shall be three months from the date of communication by the Controller.

121.

-A. Address for communications .-All communications in relation to any proceeding under the Act or these rules shall be addressed to the Controller at the appropriate office.]

122. Correction of clerical errors

.-A request for the correction of a clerical error in any document referred to in section 78 shall be accompanied by a copy of the document highlighting the corrections clearly alongwith the fees payable therefor as specified in the First Schedule.

123. Manner of advertisement of the proposed correction of any error

.-Where the Controller requires a notice of the nature of the proposed correction to be advertised, the request and the nature of the proposed correction shall be published [* * *] [The words " in the Official Gazette, and in such other manner as the Controller may deem fit" omitted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).] and the person making the request shall also serve copies of the request and the copies of the document showing the proposed corrections to such persons who, in the opinion of the Controller, may be interested.

124. Manner and time of opposition to the making of corrections

.-(1) Any person interested may, at any time, within three months from the date of the advertisement of the request for correction in [* * *] [The words " in the Official Gazette" omitted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).] give notice of opposition to the Controller in Form 14 in duplicate.(2)Such notice of opposition shall be accompanied by a statement in duplicate setting out the nature of the opponent's interest, the facts on which he relies and the relief which he seeks.(3)A copy of the notice and of the statement shall be sent by the Controller to the person making the request.(4)The procedure specified in rules 58 to 63 relating to the filing of reply statement, leaving evidence, hearing and costs shall, so far as may be, apply to the hearing of the opposition under section 78 as they apply [in the hearing of the opposition proceeding] [Substituted by S.O. 1418(E), dated 28.12.2004, for " to the hearing of the opposition to the grant of patents" (w.e.f. 1.1.2005).].

125. Notification of corrections

.-The Controller shall notify the person making a request for the correction and the opponent, if any, of the corrections made in the relevant document.

126. Form, etc., of affidavits

.-(1) The affidavits required by the Act or these rules to be filed at the patent office or furnished to the Controller shall be duly sworn to in the manner as prescribed in sub-rule (3).(2)Affidavits shall

be confined to such facts as the deponent is able, of his own knowledge, to prove except in interlocutory matters, where statements of belief of the deponent may be admitted, provided that the grounds thereof are given.(3)Affidavits shall be sworn to as follows:-(a)in India-before any Court or person having by law authority to receive evidence, or before any officer empowered by such Court as aforesaid to administer oaths or to take affidavits;(b)in any country or place outside India-before a diplomatic or consular officer, within the meaning of the Diplomatic and Consular Officers (Oaths and Fees) Act, 1948 (41 of 1948) in such country or place or before a notary of the country or place, recognised by the Central Government under section 14 of the Notaries Act, 1952 (53 of 1952), or before a Judge or Magistrate of the country or place.(4)Alterations and interlineations shall, before an affidavit is sworn to or affirmed be authenticated by the initials of the person before whom the affidavit is sworn to.

127. Exhibits

.-Where there are exhibits to be filed in an opposition or any other proceedings, a copy or impression of each exhibit shall be supplied to the other party at his request and expense; if copies or impressions of the exhibits cannot conveniently be furnished, the originals shall be left with the Controller for inspection by the person interested by prior appointment. The exhibits in original if not already left with the Controller shall be produced at the hearing.

128. Directions not otherwise prescribed

.-(1) Where for the proper prosecution or completion of any proceedings under the Act or these rules, the Controller is of the opinion that it is necessary for a party to such proceedings to perform an act, file a document or produce evidence, for which provision has not been made in the Act or these rules, he may, by notice in writing, require such party to perform the act, file the document or produce the evidence specified in such notice.(2)Where an applicant or a party to a proceeding desires to be heard or not heard, the Controller may, at any time, require him to submit his statement in writing giving such information as the Controller may deem necessary within the time specified by him.

129. [Exercise of discretionary power by the Controller [Substituted by S.O. 1418(E), dated 28.12.2004, for Rule 129 (w.e.f. 1.1.2005).]

.-Before exercising any discretionary power under the Act or these rules which is likely to affect an applicant for a patent or a party to a proceeding adversely, the Controller shall give such applicant or party, a hearing, after giving him or them, ten days notice of such hearing ordinarily.]

129A. [Adjournment of hearing. [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

- An applicant for patent or a party to a proceeding may make a request for adjournment of the hearing with reasonable cause along with the prescribed fee prescribed in First Schedule, at least

three days before the date of hearing and the Controller, if he thinks fit to do so, and upon such terms as he may direct, may adjourn the hearing and intimate the parties accordingly:Provided that no party shall be given more than two adjournments and each adjournment shall not be for more than thirty days.]

130. Application for review of decisions or setting aside of orders of the Controller

.-(1) An application to the Controller for the review of his decision under clause (f) of sub-section (1) of section 77 shall be made in [Form 24] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 25" (w.e.f. 1.1.2005).] within one month from the date of communication of such decision to the applicant or within such further period not exceeding one month thereafter as the Controller may on a request made in Form 4 allow and shall be accompanied by a statement setting forth the grounds on which the review is sought. Where the decision in question concerns any other person in addition to the applicant, the Controller shall forthwith transmit a copy of each of the application and the statement to the other person concerned.(2)An application to the Controller for setting aside an order passed by him ex parte under clause (g) of sub-section (1) of section 77 shall be made in [Form 24] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 25" (w.e.f. 1.1.2005).] within one month from the date of communication of such order to the applicant or within such further period not exceeding one month as the Controller may on a request made in Form 4 allow and shall be accompanied by a statement setting forth the grounds on which the application is based. Where the order concerns any other person in addition to the applicant, the Controller shall, forthwith transmit a copy each of the application and the statement to the other person concerned.

131. Form and manner in which statements required under section 146(2) to be furnished

.-(1) The statements shall be furnished by every patentee and every licencee under sub-section (2) of section 146 in [Form 27] [Substituted by S.O. 1418(E), dated 28.12.2004, for " Form 29" (w.e.f. 1.1.2005).] which shall be duly verified by the patentee or the licencee or his authorised agent.(2)The statements referred to in sub-rule (1) shall be furnished in respect of every calendar year within three months of the end of each year.(3)The Controller may publish the information received by him under sub-section (1) or sub-section (2) of section 146 [* * *] [The words " in the Official Gazette and in such other manner as he may deem fit" omitted by S.O. 1418(E), dated 28.12.2004 (w.e.f. 1.1.2005).].

132. Form of application for the issue of a duplicate patent

.-An application for the issue of a duplicate patent under section 154 shall contain a statement setting out the circumstances in which the patent was lost or destroyed or cannot be produced together with the fee as specified therefor in the First Schedule.

133. Supply of certified copies and certificates under sections 72 and 147

.- [(1) Certified copies of any entry in the register, or certificates of, or extracts from patents, specifications and other public documents in the patent office, or from registers and other records including records in computer floppies, diskettes or any other electronic form kept there, may be furnished by the Controller on a request therefor made to him and on payment of the fee specified therefor in the First Schedule:Provided that certified copies shall be issued in the order in which the request is filed.(2)Notwithstanding anything contained in sub-rule (1), certified copies shall be furnished within a period of one week if such request is made along with the fee specified therefore in the First Schedule.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

134. Request for information under section 153

.-(1) A request for information in respect of the following matters relating to any patent or application for patent shall be admissible namely,-(a)as to when a complete specification following a provisional specification has been filed or an application for patent has been deemed to have been abandoned;(aa)[as to when the information under section 8 has been filed;] [Inserted by S.O. 657(E), dated 5.5.2006 (w.e.f. 5.5.2006).](b)as to when publication of application has been made under section 11-A;(c)as to when an application has been withdrawn under section 11-B;(d)as to when a request for examination has been made under section 11-B;(e)as to when the examination report has been issued under section 12;(f)[as to when an application for patent has been refused; [Substituted by S.O. 1418(E), dated 28.12.2004, for Clauses (f) and (g) (w.e.f. 1.1.2005).](g)as to when a patent has been granted;](h)as to when a renewal fee has been paid;(i)as to when a term of a patent has expired or shall expire;(j)as to when an entry has been made in the register or application has been made for the making of such entry; or(k)[as to when any application is made or action taken involving an entry in the register, publication in the] [Substituted by S.O. 1418(E), dated 28.12.2004, for Clause (k) (w.e.f. 1.1.2005).][Official Journal] [Substituted by S.O. 657(E), dated 5.5.2006, for " Official Gazette" (w.e.f. 5.5.2006).][or otherwise, if the nature of the application or action is specified in the request.] [Substituted by S.O. 1418(E), dated 28.12.2004, for Clause (k) (w.e.f. 1.1.2005).](2)Separate request shall be made in respect of each item of information required.(3)The fee payable on a request to be made under section 153 shall be as set out in the First Schedule.

135. Agency

.- [(1) The authorisation of an agent for the purposes of the Act and these rules shall be filed in Form 26 or in the form of a power of attorney within a period of three months from the date of filing of such application or document, failing which no action shall be taken on such application or documents for further processing till such deficiency is removed.] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](2)Where any authorisation has been made under sub-rule (1), service upon the agent of any document relating to any proceeding or matter under the Act or these rules shall be deemed to be service upon the person so authorising him and all communications directed to be made to a person in respect of any proceeding or matter may be

addressed to such agent, and all appearances before the Controller relating thereto may be made by or through such agent.(3)Notwithstanding anything contained in sub-rules (1) and (2), the Controller may, if it is considered necessary, require the personal signature or presence of an applicant, opponent or party to such proceeding or matter.

136. Scale of costs

.-(1) In all proceedings before the Controller, he may, subject to rule 63, award costs as he considers reasonable, having regard to all the circumstances of the case:Provided that the amount of costs awarded in respect of any matter set forth in the Fourth Schedule shall not exceed the amount specified therein.(2)Notwithstanding anything contained in sub-rule (1), the Controller may, in his discretion award a compensatory cost in any proceeding before him which in his opinion is false or vexatious.

137. Powers of Controller generally

.-Any document for the amendment of which no special provision is made in the Act may be amended and any irregularity in procedure which in the opinion of the Controller may be obviated without detriment to the interests of any person, may be corrected if the Controller thinks fit and upon such terms as he may direct.

138. [Power to extend time prescribed [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]

.-(1) Except for the time prescribed in clause (i) of sub-rule (4) of rule 20, sub-rule (6) of rule 20, rule 21, sub-rules (1), (5) and (6) of rule 24B, sub-rules (10) and (11) of rule 24C, sub-rule (4) of rule 55, sub-rule (1A) of rule 80 and sub-rules (1) and (2) of rule 130, the time prescribed by these rules for doing of any act or the taking of any proceeding thereunder may be extended by the Controller for a period of one month, if he thinks it fit to do so and upon such terms as he may direct.(2)Any request for extension of time prescribed by these rules for the doing of any act or the taking of any proceeding thereunder shall be made before the expiry of such time prescribed in these rules.]

139. Hearing before the Controller to be in public in certain cases

.-Where the hearing before the Controller of any dispute between two or more parties relating to an application for a patent or to any matter in connection with a patent takes place after the date of the publication of the complete specification, the hearing of the dispute shall be in public unless the Controller, after consultation with the parties to the dispute who appear in person or are represented at the hearing, otherwise directs.[The First Schedule] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).](See rule 7)Table 1 - Fees Payable

Number of entry	On what payable	Number of the	For e-filing	For physical

		relevant Form		filing			
Natural person(s) and/ or Startup	Small entity, alone or with natural person(s)and/ or Startup	Others, alone or with natural person(s) and/ orStartup and/ or small entity	Natural person(s) and/ or Startup	Small entity, alone or with natural person(s)and/ or Startup	Others, alone or with natural person(s) and/ orStartup and/ or small entity		
1	2	3	4	5	6	7	8
			Rupees	Rupees	Rupees	Rupees	Rupees
1.	On application for a patent under sections 7, 54 or 135 andrule 20(1) accompanied by provisional or complete specification-	1	1600 Multiple of 1600 in case of every multiple priority.	4000 Multiple of 4000 in case of every multiple priority.	8000 Multiple of 8000 in case of every multiple priority.	1750 Multiple of 1750 in case of every multiple priority.	4400 Multip 4400 i case of every multip priorit
(i) for each sheet of specification in addition to 30,excluding sequence listing of nucleotides and/ or amino acidsequences under sub-rule (3) of rule (9);	(i) 160	(i) 400	(i) 800	(i) 180	(i) 440	(i) 880	
(ii) for each claim in addition to 10;	(ii) 320	(ii) 800	(ii) 1600	(ii) 350	(ii) 880	(ii) 1750	
(iii) for each page of sequence listing of nucleotides and/ oramino	(iii) 160 subject to a maximum of 24000	(iii) 400 subject to a maximum of 60000	(iii) 800 subject to a maximum of 120000	Not allowed	Not allowed	Not allowed	

acid sequences under sub-rule (3) of rule (9).							
2.	On filing complete specification after provisional up to 30pages having up to 10 claims –	2	No fee	No fee	No fee	No fee	No fee
(i) for each sheet of specification in addition to 30,excluding sequence listing of nucleotides and/ or amino acidsequences under sub-rule (3) of rule (9);	(i) 160	(i) 400	(i) 800	(i) 180	(i) 440	(i) 880	
(ii) for each claim in addition to 10.	(ii) 320	(ii) 800	(ii) 1600	(ii) 350	(ii) 880	(ii) 1800	
(iii) for each page of sequence listing of nucleotides and/ oramino acid sequences under subrule (3) of rule (9).	(iii) 160 subject to a maximum of 24000	(iii) 400 subject to a maximum of 60000	(iii) 800 subject to a maximum of 120000	Not allowed	Not allowed	Not allowed	
3.	On filing a statement and undertaking under section 8.	3	No fee	No fee	No fee	No fee	No fee
4.	i) On request for extension of time under sections 53(2) and142(4), rules 13(6), 80(1A) and 130 (per month).	4	480	1200	2400	530	1300

ii) On request for extension of time under sub-rule (5) ofrule 24B (per month).	4	1000	2000	4000	1100	2200	4400
iii) On request for extension of time under sub-rule (11) ofrule 24C (per month).	4	2000	5000	10000	2200	5500	11000
5.	On filing a declaration as to inventorship under sub-rule (6)of rule 13.	5	No fee	No fee	No fee	No fee	No fee
6.	On application for postdating.	-	800	2000	4000	880	2200
7.	On application for deletion of reference under section 19 (2).	-	800	2000	4000	880	2200
8.	(i) On claim under section 20(1);	6	800	2000	4000	880	2200
(ii) On request for direction under section 20 (4) or 20 (5).	6	800	2000	4000	880	2200	4400
9.	(i) On notice of opposition to grant of patent under section25(2);	7	2400	6000	12000	2600	6600
(ii) On filing representation opposing grant of patent undersection 25(1).	7A	No fee	No fee	No fee	No fee	No fee	No fee
10.	On giving notice that hearing before	-	1500	3800	7500	1700	4100

	Controller shall beattended under rule 62(2).						
11.	On application under sections 28(2), 28(3) or 28(7).	8	800	2000	4000	880	2200
12.	Request for publication under section 11A(2) and rule 24A.	9	2500	6250	12500	2750	6900
13.	Application for withdrawing the application under section11B(4), and rules 7(4A) and 26.	29	No fee	No fee	No fee	No fee	No fee
14.	On request for examination of application for patent-	18					
(i) under section 11B and rule 24(1);	4000	10000	20000	4400	11000	22000	
(ii) under rule 20(4)(ii).	5600	14000	28000	6150	15400	30800	
14A.	On request for expedited examination of application for patentunder rule 24C.	18A	8000	25000	60000	Not allowed	Not allowed
14B.	Conversion of the request for examination filed under rule 24Bto request for expedited examination under rule 24C.	18 A	4000	15000	40000	Not allowed	Not allowed
15.	On application under section 44 for amendment of	10	2400	6000	12000	2650	6600

	patent.						
16.	On application for directions under section 51(1) or 51(2).	11	2400	6000	12000	2650	6600
17.	On request for grant of a patent under sections 26(1) and52(2).	12	2400	6000	12000	2650	6600
18.	On request for converting a patent of addition to anindependent patent under section 55 (1).	-	2400	6000	12000	2650	6600
19.	For renewal of a patent under section 53-						
(i)	before the expiration of the 2nd year from the date of patentin respect of 3rd year;	-	800	2000	4000	880	2200
(ii)	before the expiration of the 3rd year in respect of the 4thyear;	-	800	2000	4000	880	2200
(iii)	before the expiration of the 4th year in respect of the 5thyear;	-	800	2000	4000	880	2200
(iv)	before the expiration of the 5th year in respect of the 6thyear;	-	800	2000	4000	880	2200
(v)	before the expiration of the 6th year in respect of the 7thyear;	-	2400	6000	12000	2650	6600
(vi)	before the expiration of the 7th year in respect	-	2400	6000	12000	2650	6600

	of the 8thyear;						
(vii)	before the expiration of the 8th year in respect of the 9thyear;	-	2400	6000	12000	2650	6600
(viii)	before the expiration of the 9th year in respect of the 10thyear;	-	2400	6000	12000	2650	6600
(ix)	before the expiration of the 10th year in respect of the 11thyear;	-	4800	12000	24000	5300	13200
(x)	before the expiration of the 11th year in respect of the 12thyear;	-	4800	12000	24000	5300	13200
(xi)	before the expiration of the 12th year in respect of the 13thyear;	-	4800	12000	24000	5300	13200
(xii)	before the expiration of the 13th year in respect of the 14thyear;	-	4800	12000	24000	5300	13200
(xiii)	before the expiration of the 14th year in respect of the 15thyear;	-	4800	12000	24000	5300	13200
(xiv)	before the expiration of the 15th year in respect of the 16thyear;	-	8000	20000	40000	8800	22000
(xv)	before the expiration of the 16th year in respect of the 17thyear;	-	8000	20000	40000	8800	22000
(xvi)	before the expiration of the 17th year in respect of the 18thyear;	-	8000	20000	40000	8800	22000
(xvii)		-	8000	20000	40000	8800	22000

	before the expiration of the 18th year in respect of the 19thyear;						
(xvii)	before the expiration of the 19th year in respect of the 20thyear.	-	8000	20000	40000	8800	22000
20.	On application for amendment of application for patent orcomplete specification or other related documents under section57-	13					
(i)	before grant of patent;	800	2000	4000	880	2200	4400
(ii)	after grant of patent;	1600	4000	8000	1750	4400	8800
(iii)	where amendment is for changing name or address or nationalityor address for service.	320	800	1600	350	880	1750
21.	On notice of opposition to an application under sections57(4), 61(1) and 87(2) or to surrender a patent under section63(3) or to a request under section 78(5).	14	2400	6000	12000	2650	6600
22.	On application for restoration of a patent under section 60.	15	2400	6000	12000	2650	6600
23.	Additional fee for restoration under section 61(3) and rule86(1).	-	4800	12000	24000	5300	13200

24.	On notice of offer to surrender a patent under section 63.	-	1000	2500	5000	1100	2750
25.	On application for the entry in the register of patents of thename of a person entitled to a patent or as a share or as amortgage or as licensee or as otherwise or for the entry in theregister of patents of notification of a document under sections69(1) or 69(2) and rules 90(1) or 90(2).	16	1600 (In respect of each patent)	4000 (In respect of each patent)	8000 (In respect of each patent)	1750 (In respect of each patent)	4400 (respect each patent)
26.	On application for alteration of an entry in the register ofpatents or register of patent agents under rules 94(1) or rule118(1).	-	320	800	1600	350	880
27.	On request for entry of an additional address for service inthe Register of Patents under rule 94(3).	-	800	2000	4000	880	2200
28.	On application for compulsory license under sections 84(1),91(1), 92(1) and 92A.	17	2400	6000	12000	2650	6600
29.	On application for revocation of a patent under section 85(1).	19	2400	6000	12000	2650	6600
30.	On application for revision of terms	20	2400	6000	12000	2650	6600

	and conditions of licenseunder section 88(4).						
31.	On request for termination of compulsory license under section94.	21	2400	6000	12000	2650	6600
32.	On application for registration as a patent agent under rule109(1) or rule 112.	22	3200	Not applicable	Not applicable	3500	Not applica
33.	On request for appearing in the qualifying examination underrule 109(3).	-	1600	Not applicable	Not applicable	1750	Not applica
34.	For continuance of the name of a person in the register ofpatent agents-						
(i) for the 1st year to be paid along with registration;	-	800	Not applicable	Not applicable	880	Not applicable	Not applica
(ii) for every year excluding the 1st year to be paid on the1st April in each year.	-	800	Not applicable	Not applicable	880	Not applicable	Not applica
35.	On application for duplicate certificate of patent agent underrule 111A.	-	1600	Not applicable	Not applicable	1750	Not applica
36.	On application for restoration of the name of a person in theregister of patent agents under rule 117(1).	23	1600 (Plus continuation fee under entry number 34)	Not applicable	Not applicable	1750 (Plus continuation fee under entry number 34)	Not applica

37.	On a request for correction of clerical error under section78(2).	-	800	2000	4000	880	2200
38.	On application for review or setting aside the decision ororder of the controller under section 77(1)(f) or 77(1)(g).	24	1600	4000	8000	1750	4400
39.	On application for permission for applying patent outsideIndia under section 39 and rule 71(1).	25	1600	4000	8000	1750	4400
40.	On application for duplicate patent under section 154 and rule132.	-	1600	4000	8000	1750	4400
41.	(i) On request for certified copies under section 72 or forcertificate under section 147 and rule 133(1).	-	1000 (up to 30 pages and, thereafter, 30 for each extra page)	2500 (up to 30 pages and, thereafter, 75 for each extra page)	5000 (up to 30 pages and, thereafter, 150 for each extra page)	1100 (up to 30 pages and, thereafter, 30 for each extra page)	2750 (u to 30 pages a thereaf 75 for e extra p
(ii) On request for certified copies under section 72 or forcertificate under section 147 and rule 133(2).	-	2400 (up to 30 pages and thereafter, 30 for each extra page)	6000 (up to 30 pages and thereafter, 30 for each extra page)	12000 (up to 30 pages and thereafter, 30 for each extra page)	3300 (up to 30 pages and thereafter, 30 for each extra page)	6600 (up to 30 pages and thereafter, 30 for each extra page)	13200 to 30 pages a thereaf 30 for extra p
42.	For certifying office copies, printed each.	-	800	2000	4000	880	2200
43.	On request for inspection of register under section	-	320	800	1600	350	880

	72,inspection under rule 27 or rule 74A.						
44.	On request for information under section 153 and rule 134.	-	480	1200	2400	530	1300
45.	On form of authorisation of a patent agent.	26	No fee	No fee	No fee	No fee	No fee
46.	On petition not otherwise provided for.	-	1600	4000	8000	1750	4400
47.	For supplying of photocopies of the documents, per page.	-	10	10	10	10	10
48.	Transmittal fee for International application.	-	3200	8000	16000	3500	8800
49.	For preparation of certified copy of priority document and fortransmission of the same to the International Bureau of WorldIntellectual Property Organization.	-	1000 (up to 30 pages and, thereafter, 30 for each extra page)	2500 (up to 30 pages and, thereafter, 75 for each extra page)	5000 (up to 30 pages and, thereafter, 150 for each extra page)	1100 (up to 30 pages and, thereafter, 30 for each extra page)	2750 (u to 30 pages a thereaf 75 for e extra p
50.	On statement regarding working of a patented invention on acommercial scale in India under section 146(2) and rule 131(1).	27	No fee	No fee	No fee	No fee	No fee
51.	To be submitted for claiming the status of a small entity orstartup	28	No fee	No fee	No fee	No fee	No fee

52.	Request for adjournment of hearing under rule 129A (for eachadjournment).	-	1000	2500	5000	1100	2750
53.	Miscellaneous form under rule 8(2), to be used when no otherform is prescribed.	30	As applicable				

Table II - Fees Refundable

On what account fee refundable	Refund of fees
Refund of fees under sub-rule (4A) of rule 7	90% of fee paid for request for examination or request forexpedited examination.

[THE SECOND SCHEDULE] [Substituted by S.O. 1418(E), dated 28-12-2004, for Second Schedule (w.e.f. 1-1-2005).](See rule 8)FORMSLIST OF FORMS

Form No.	Section and rule	Title
1	2	3
1.	Sections 7, 54 and 135 and rule 20(1)	Application for grant of a patent
2.	Section 10; rule 13	Provisional /Complete Specification
3.	Section 8 and rule 12	Statement and undertaking
4.	Sections 53(2) and 142(4); rules 13(6), 24-B(4)(ii), 80(1-A) and 130	Request for extension of time
5.	Section 10(6) and rule 13(6)	Declaration as inventor ship
6.	Sections 20(1), 20(4), 20(5) and rules 34(1), 35(1) or 36(1)	Claim or request regarding any change in applicant for patent
7.	Section 25(3) and rule 55-A	Notice of opposition to grant of a patent
8.	Sections 28(2), 28(3) or 28(7) and rules 66, 67, 68	Request or claim regarding mention of inventor as such in a patent
9.	Section 11-A(2) and rule 24-A	Request for publication
10.	Section 44 end rule 75	Application for amendment of patent
11.	Sections 51(1), 51(2) and rules 76,77	Application for direction of the Controller
12.	Sections 26(1) and 52(2) and rules 63-A and 79	Request for grant of patent
13.	Section 57 and rule 81(1)	Application for amendment of the application for patent/complete specification

14.	Sections 57(4), 61(1), 63(3), 78(5) and 87(2) and rules 81(3)(b), 85(1),87(2), 98(1),101(3) or 124	Notice of opposition to amendment/restoration/surrender of patent/grant of compulsory license or revision of terms thereof or to a correction of clerical errors
15.	Section 60 and rule 84	Application for restoration of patents
16.	Sections 69(1) or 69(2) and rules 90(1) and 90(2)	Application for registration of a title/interest in a patent or share in it or registration of any document purporting to affect proprietorship of the patent
17.	Sections 84(1), 91, 92 or 92-A and rule 96	Application for compulsory license
18.	Section 11-B and rules 20(4)(ii) and 24-B(1)(i)	Request for examination of application for patent
19.	Section 85(1) and rule 96	Application for revocation of a patent for non-working
20.	Section 88(4) and rule 100	Application for revision of terms and conditions of license
21.	Section 94 and rule 102(1)	Request for termination of compulsory license
22.	Rules 109(1) and 112	Application for registration of patentagent
23.	Section 130(2) and rule 117(1)	Application for the restoration of the name in the register of patent agents
24.	Sections 77(1)(f), 77(1)(g) and rules 130(1) and 130(2)	Application for review/setting aside Controller's decision/order
25.	Section 39 and rule 71(1)	Request for permission for making patent application outsideIndia
26.	Sections 127,132 and rule 135	Form of authorisation of a patent agent/or any person in a matter or proceeding under the Act
27.	Section 146(2) and rule 131(1)	Statement regarding the working of the Patented invention on commercial scale inIndia

[Form 1] [Substituted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]The Patents Act1970 (39 of 1970) andThe PatentsRules, 2003Applicationfor Grant of Patent(Seesection 7, 54 and 135 and sub-rule (1) of rule 20) (For OfficeUse Only)

ApplicationNo.

Filingdate:

Amountof Fee paid:

CBRNo:

Signature:

1. Applicant's Reference/ Identification No. (As allottedby Office)

Typeof Application [Pleasetick (☐) at the appropriate category

Ordinary ( )	Convention ()		PCT-NP ( )		
Divisional ()	Patent ofAddition ( )	Divisional ()	Patent ofAddition ( )	Divisional ()	Patent ofAddition ( )

3A.Applicant(S)

Name in Full	Nationality	Country ofResidence	Address ofthe Applicant
			House No.
Street			
City			
State			
Country			
Pin code			

3B.Category of Applicant
[Please tick (☐) at the appropriatecategory]

Natural Person ( ) Other than Natural Person

Small Entity ( ) Startup ( ) Others ( )

4.Inventor(S) [Please tick () at the appropriate category]

Are all theinventor(s) same as the applicant(s) named above? Yes ( ) No ( )

If"No",furnish the details of the inventor(s)

Name in Full	Nationality	Country ofResidence	Address ofthe Applicant
			House No.
Street			
City			
State			
Country			
Pin code			

5.Title of the Invention

6.Authorised Registered Patent Agent(S)	IN/PA No.
Name	
MobileNo.	

7.Address for Service of Applicant in India	Name
PostalAddress	
TelephoneNo.	
MobileNo.	
FaxNo.	
E-mailID	

8. In Case of Application Claiming Priority of Application Filed in Convention Country, Particulars of Convention Application

Country	Application Number	Filing date	Name of the applicant	Title of the invention	IPC (as classified in the convention country)

9. In Case of PCT National Application, Particulars of International Application Filed under Patent Co-operation Treaty (PCT)

Internationalapplication number	Internationalfiling date

10. InCase of Divisional Application filed under Section 16,Particulars of Original (First) Application

Original(first) application No.	Date offiling of original (first) application

11. InCase of Patent of Addition filed under Section 54, Particulars ofMain Application or Patent

Mainapplication/ patent No.	Date offiling of main application

12. Declarations

(i) Declaration by theinventor(s)(Incase the applicant is an assignee:the inventor(s) may signherein below or the applicant may upload the assignment orenclose the assignment with this application for patent or sendthe assignment by post/electronic transmission duly authenticatedwithin the prescribed period).I/We,the above named inventor(s) is/are the true firstinventor(s) for this Invention and declare that the applicant(s)herein is/are my/our assignee or legal representative.(a)Date(b)Signature(s)(c)Name(s)

(ii)Declaration by the applicant(s) in the convention country(Incase the applicant in India is different than the applicant inthe convention country:the applicant in the conventioncountry may sign herein below or applicant in India may uploadthe assignment from the applicant in the convention country orenclose the said assignment with this application for patent orsend the assignment by post/ electronic transmission dulyauthenticated within the prescribed period)I/We, the applicant(s) in the convention country declare that theapplicant(s) herein is/ are my/ our assignee or legalrepresentative.(a)Date(b)Signature(s)(c)Name(s) of the signatory

(iii)Declaration by the applicant(s)I/We the applicant(s) hereby declare(s) that: -€ Iam/ We are in possession of the above-mentioned invention.€ Theprovisional/ complete specification relating to the invention isfiled with this application.€ Theinvention as disclosed in the specification uses the biologicalmaterial from India and the necessary permission from thecompetent authority shall be submitted by me/ us before the grantof patent to me/ us.€ Thereis no lawful ground of objection(s) to the grant of the Patent tome/us.€ Iam/we are the true first inventor(s).€Iam/we are the assignee or legal representative of truefirst inventor(s).€ Theapplication or each of the applications, particulars of which aregiven in Paragraph-8, was the first application in conventioncountry/countries in respect of my/our invention(s).€ I/We claim the priority from the above mentioned application(s)filed in convention country/countries and state that noapplication for protection in respect of the invention had beenmade in a convention country before that date by me/us or by anyperson from which I/ We derive the title.€ My/ourapplication in India is based on

international application underPatent Cooperation Treaty (PCT) as mentioned in Paragraph-9.€ Theapplication is divided out of my/ our application particulars ofwhich is given in Paragraph-10 and pray that this application maybe treated as deemed to have been filed on DD/MM/YYYYunder section 16 of the Act.€ Thesaid invention is an improvement in or modification of theinvention particulars of which aregiven inParagraph-11.

13. Following are the Attachments with the Application(A) Form 2

Item	Details	Fee	Remarks
Complete/provisional specification)#	No. of pages		
No. ofClaim(s)	No. of claimsand No. of pages		
Abstract	No. of pages		
No. ofDrawing(s)	No. ofdrawings and No. of pages		

In case of a complete specification, if the applicant desires to adopt the drawings filed with his provisional specification as the drawings or part of the drawings for the complete specification under rule 13(4), the number of such pages filed with the provisional specification are required to be mentioned here.

(b)Complete specification (in conformation with the internationalapplication)/ as amended before the Inter copies).(c)Sequence listing in electronic form(d)Drawings (in conformation with the international applicatio (IPEA), as applicable (2 copies).(e)Priority document(s) or a request to retrieve the prioritydocument(s) fro of first filing to make thepriority document(s) available to DAS.(f)Translation of priority document/Specific Patentability.(g)Statement and Undertaking on Form 3(h)Declaration of Inventorship on Form 5(i)Power o Authority(j).....
Cash/ Banker'sCheque/ Bank Draft bearing No. ..... Date.....
best of my/ our knowledge, informationand belief the fact and matters slated herein are correct andI/ We re
..... dayof ..... 20 .....
.....Note:-*Repeat boxes in case of more than one entry.*To be signed by mentioned.*Tick (☐)/ cross (x) whichever is applicable/ not applicable indeclaration in paragraph-12.* Nam beginning.*Strike out the portion which is/ are not applicable.*For fee: See First Schedule

Form 2The Patent Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Provisional/complete Specification(See section 10; rule 13)

1. TITLE OF THE INVENTION

2. APPLICANT(S)(a) Name:(b) Nationality:(c) Address:

3. PREAMBLE TO THE DESCRIPTION

PROVISIONAL	COMPLETE
The following specification describes the invention.	The following specification particularly describes the invention and the manner in which it is to be performed.

4. DESCRIPTION (Description shall start from next page)

5. CLAIMS (not applicable for provisional specification. Claims should start with the

preamble-"I/We claim" on separate page)

6. DATE AND SIGNATURE (to be given at the end of last page of specification)

7. ABSTRACT OF THE INVENTION (to be given alongwith complete specification on separate page)

Note. -*Repeat boxes in case of more than one entry.*To be signed by the applicant(s) or by authorised registered patent agent.*Name of the applicant should be given in full, family name in the beginning.*Complete address of the applicant should be given stating the postal index no./code, State and country.*Strike out the column which is/are not applicable.

[Form3]
[Substituted by Notification No. G.S.R.523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]ThePatents Act, 1970(39of 1970)andThePatents Rules, 2003Statementand Undertaking Under Section 8(Seesection 8; Rule 12)

1.Name of the applicant(s).	I/We .....
2.Name, address and nationality of the joint applicant.	(i)that I/ We have not made any application for thesame/ substantially the same invention ou

Nameof the country	Dateof application	ApplicationNo.	Statusof the application	Dateof publication	Dateof grant

3.Name and address of the assignee	(iii)that the rights in the application(s) has/ have been assignedto..... We undertake that upto the date of grant of the patent by theController, I/ We would keep hin the detailsregarding corresponding applications for patents filed outsideIndia within six mont filing of suchapplication.Datedthis ..... day of ..... 20 .....

4.To be signed by the applicant or his authorized registered patentagent.	Signature.....
5.Name of the natural person who has signed.	(.....).

ToThe Controllerof Patents,The PatentOffice,at .....

Note.- Strike out whichever is not applicable;

[Form4] [Substituted by Notification No. G.S.R.523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]ThePatents Act, 1970(39of 1970)andThePatents Rules, 2003Request for Extension of Time[Seesections 53(2), and 142 (4); rules 13(6), 24B(6), 24C(11) and 80(1A), 130]

1.Name of the applicant(s).	I/We ..... request for extension of time for ..... months(s) under section/ rule ..... in

application/ Patent No. .....The reasons for making the request are as follows:-.....
..... day of ..... 20 .....

2.To be signed by the applicant or his authorized registered patentagent.

Signature(.....)

3.Name of the natural person who has signed.

ToThe Controllerof Patents,The PatentOffice,at .....

Note.- For fee: See First Schedule.

FORM 5The Patents Act, 1970(39 OF 1970)AndThe Patents Rules, 2003Declaration As To Inventorship[See section 10(6) and rule 13(6)]

1. NAME OF APPLICANT(S)

hereby declare that the true and first inventor(s) of the invention disclosed in the complete specification filed in pursuance of my/our application numbered ..... dated..... is /are

2. INVENTOR(S)

(a) Name

(b) Nationality

(c) Address

Dated this.....day of.....20.....

Signature

Name of the signatory

3. DECLARATION TO BE GIVEN WHEN THE APPLICATION ININDIAIS FILED BY THE APPLICANT(S) IN THE CONVENTION COUNTRY:-

We the applicant(s) in the convention country hereby declare that our right to apply for a patent inIndiais by way or assignment from the true and first

inventor(s).

Dated this.....day of.....20.....

Signature

Name of the signatory

4. STATEMENT (to be signed by the additional inventor(s) not mentioned in the application form)

I/We assent to the invention referred to in the above declaration, being included in the complete specification filed in pursuance of the stated application.

Dated this.....day of.....20.....

Signature of the additional inventor(s):

Name:

To,

[The Controller of Patents] [Substituted by S.O. 657(E), dated 5-5-2006, for "The Controller of Patent" (w.e.f. 5-5-2006).],

The Patent Office,

At.....

Note. -*Repeat boxes in case of more than one entry.*To be signed by the applicant(s) or by authorised registered patent agent otherwise where mentioned.*Name of the inventor and applicant should be given in full, family name in the beginning.*Complete address of the inventor should be given stating the postal index no./code, State and country.*Strike out the column which is/are not applicable.FORM 6The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Claim Or Request Regarding Any Change In Applicant For Patent[See sections 20(1), 20(4) and 20(5); rules 34(1), 35(1) and 36(l)]

1. Repeat the columns (a) to (c) if there are more than one applicant.

1. I/We.....

2. Insert the name in full. The family or principal name in the beginning if the applicant is a natural person.

(a).....

(b).....

(c).....

3. Insert the complete address including postal index number/code and State and/or country.

herebyrequest that the application for Patent No.....dated.....made by.....

4. Insert the nationality.

.....

5. State the name of the applicant(s) for patent.

mayproceed in my/our name and further request that direction of the Controller, if necessary be made in that

effect.

6. Original and certified copies of the documents shall accompany the claim or request.Consent by the legal representative of the deceased joint applicant shall be filed whenever required.

.....

.....

Reasons for making the above request are as follows:-

I furnish the following, document(s) in support of my above request:

7. Insert the details of the documents.

(a).....

(b).....

(c).....

8. Complete address including postal index number/code and State alongwith telephone and telefacsimile number(s).

.....

.....

My/our address for service inIndiais :-

9. To be signed by the applicant(s) or authorised registered patent agent.

Dated this ..... day of.....20.....

Signature.....

10. Name of the natural person who has signed.

(.....).....

To

The Controller of Patents,

The Patent Office,

At.....

N.B. - This form is not applicable for mere change of name.Note. - (a) Strike out whichever is not applicable.(b)For fee: See First Schedule.FORM 7The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Notice Of Opposition[See section 25(2)] [Substituted by S.O. 657(E), dated 5-5-2006, for "See section 25(3)" (w.e.f. 5-5-2006).]; rule 55-A)]

1. State names, address and nationality.

.....

.....

1. I/We.....

2. State the grounds taken one after another.

herebygive notice of opposition to Patent No .....) granted on application No.....dated.....published on dated..... made by ..... on the group .

.....

.....

.....

3. Complete address including postal index number/code and State alongwith telephone and fax number.

My/our address for services inIndiais.....

.....

.....

.....

4. To be signed by the opponent or by his authorised registered patent agent.

Signature.....

(.....).....

5. Name of the natural person who has signed.

To

The Controller of Patents,

The Patent Office,

At.....

Note. - For fee : See First Schedule.FORM 8The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Request Or Claim Regarding Mention Of Inventor As Such In A Patent(See sections 28(2), 28(3) and 28(7); rules 66, 67 and 68)

1. State names, address and nationality of the person making this application.

1. I/We.....

.....

.....

herebystate/claim that the following person(s) be mentioned as inventor(s) in the Patent application No.....
dated.....made by .....

OR

2. Insert the name of the person mentioned as inventor.

herebydeclare that.....

.....

.....ought not to have mentioned as inventor in the application for Patent No. .....
dated.....made by .....and I/We hereby apply for a certificate to that effect.

A statement setting out the circumstances under which this application is made is attached together with the copy/copies thereof as required under the Rules.

3. Complete address including postal index number/code and State along with telephone and fax number(s)	My/our address for services inIndiais..... Dated this ..... day of..... 20.....
4. To be signed by the applicant or his authorised registered patent agent.	Signature..... (.....).....
5. Name of the natural person who has signed.	To The Controller of Patents, The Patent Office, At.....

Note. - For fee : See First Schedule.FORM 9The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Request For Publication(See section 11-A(2); rule 24-A)

1. State names, address and nationality of applicant(s).	I/We.....
	herebyrequest for early Publication of my/our[Patent application No.] [Substituted by S.O. 657(E), dated 5-5-2006, for "application for Patent No." (w.e.f. 5-5-2006).].....dated .....under section 11-A(2) ofthe Act. Dated this .....day of.....20.....
2. To be signed by the applicant or his authorised registered patent agent. (.....).....	Signature.....
3. Name of the natural person who has signed.	To The Controller of Patents, The Patent Office, At.....

Note - For fee : See First Schedule.FORM 10The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Amendment Of Patent(See section 44; rule 75)

1. Repeat these columns (a) to (c) if there are more than one applicant.	I/We..... (a)..... (b).....

(c).....

2. Insert the name in full. Family or principal name in the beginning if the applicant is a natural person.

(a).....

(b).....

(c).....

3. Insert the complete address including postal index number/code and state and/or country.

(a).....

(b).....

4. Insert the nationality.

(c).....

hereby request that Patent No ..... dated .....granted to ..... may be amended by substituting my/our name for the name of the grantee and in support to my/our request, I/We furnish the following documents:

.....

.....

5. Complete address including postal index number/code and State alongwith telephone and fax number(s).

My/our address for service inIndiais.....

.....

.....

6. To be signed by the applicant(s) or his authorised registered patent agent.

Dated this..... day of.....20....

7. Name of the natural person who has signed.

Signature.....

(.....).....

To

The Controller of Patents,

The Patent Office,

At.....

Note. - For fee : See First Schedule.FORM 11The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Direction Of The Controller(See sections 51(1) and 51(2); rules 76 and 77)

1. State the name in full, address and nationality.

I/We.....

.....

herebyapply for the following direction in respect of Patent No.....dated ..... granted to.....

.....

2. Complete address including postal index number/code and State alongwith telephone and fax number(s)

The reasons for making this application are as follows:

.....

.....

.....

My/our address for service inIndiais.....

3. To be signed by the applicant(s) or his authorised registered patent agent.

.....

.....

Dated this ..... day of.....20.....

4. Name of the natural person who has signed.

Signature.....

(.....).....

To

The Controller of Patents,

The Patent Office,

At.....:.....

Note. - For fee: See First Schedule.FORM 12The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Request For Grant Of Patent Under Sections 26(1) And 52(2)(See sections 26(1) and 52(2); rules 63-A and 79)

1. Repeat the columns (a) to (c) if therearemore than one applicants.

I/We.....

.....

(a).....

2 Insert the name in full. Family or principal name in the beginning, if the applicant is a natural person.

.....

(b).....

.....

3. Insert the complete address including postal code and State and/or

.....

country.

(c).....

.....

4. Nationality of the person.

hereby declare:-

5. Name of the High Court.

(i) that I/We made opposition under section 25(3) before the controller or a petition under section 64 of the Act before Appellate Board or High Court of..... and the details of the patent and the opposition for the petition are given below:

Patent No .....dated.....

Grantee /Patentee.....

Opposition.....

Noticedated.....

orPetition No .....dated.....

6. Name, address and nationality of the true and first inventor.

(ii) that I/We have claimed to be the true and first inventor(s)/assignee(s)/legal representative(s) of ..... the true and first inventor of the invention for which the said patent was granted.

(iii) that by an order in the said opposition or petition the patent was revoked/the complete specification of the patent was directed to be amended by exclusion of.....claims thereof.

(iv) that the Controller or Appellate Board or Court ordered to grant to me a patent in lieu of the said patent/part of the invention excluded by the amendment.

(v) that I/We submit a statement and certified copy of the order of the Controller or Appellate Board or Court in support of my application and request that a patent be granted to me in accordance with the order of the Appellate Board or Court.

7. Compete address including postal index number code and State alongwith telephone and fax number(s).

My/our address for service inIndiais.....

.....

.....

.....

8. To be signed by the applicant(s) or his authorised registered patent agent.

Dated this ..... day of..... 20.....

9. Name of the natural person who has signed.	Signature..... (.....)..... To The Controller of Patents, The Patent Office, At.....

Note. - (a) Strike out whichever is not applicable.(b)For fee : See First Schedule.

[Form13]
[Substituted by Notification No. G.S.R.523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]ThePatents Act, 1970(39of 1970)andThePatents Rules, 2003Application for Amendment of the Application for Patent/ Complete Specification/ Any Document related thereto[Seesections 57(2); sub-rule (1) of rule 81]

1.Name of the applicant(s).	I/We ..... leave to amend the application/ any document related thereto/ complete specification with r patent No. ..... dated ..... as highlighted in the copy hereto annexedMy/ Our reason for follows:-..... We declare that no action for infringement of for the revocation of the patent in question is p Board or a Court.I/ We declare that the facts and matters stated herein are true to the best of

information and belief.

2.To be signed by the applicant(s) or patentee(s) or by his authorized registered patentagent.

Datedthis ..... day of ..... 20 .....Signature .....

3.Name of the natural person who has signed.

(.....)

ToThe Controllerof Patents,The PatentOffice,at .....

Note.- For fee: See First Schedule.

FORM 14The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Notice Of Opposition To Amendment/restoration/surrender Of Patent/grant Of Compulsory Licence Or Revision Of Terms Thereof Or To Correction Of Clerical Errors(See sections 57(4), 61(1), 63(3), 78(5) and 87(2); rules 81(3)(b), 85(1), 87(2), 98(1),101(3) and 124)

1. State the name, address and nationality.

I/We.....

.....

.....

hereby give notice of opposition :-

tothe amendment of the application/specification with respect to application for Patent No .....dated .....

OR

tothe application for restoration of Patent No.....dat

OR

tothe offer to surrender the Patent No.....
dated.....

OR

forthe grant of compulsory licence or revocation of Patent No .....dated.....

OR

forthe revision of the terms and conditions of licence in respect of Patent No .....

OR

forcorrection of a clerical error in Patent No c
...../SpecificationNo.....
respect of Patent No ..... dated.....or Patent applicat
No.....dated.....

The grounds in which the said opposition is made are as follows :

.....

.....

2. Complete address including postal index number/code and State alongwith the telephone and fax number(s).

My/our address for service inIndiais.....

.....

3. To be signed by the opponent or his authorised registered patent agent.

Dated this ..... day of.....20.....

Signature.....

(.....)....

4. Name of the natural person who has signed.

To

The Controller of Patents,

The Patent Office,

At.....

Note. - (a) Strike out whichever is not applicable.(b)For fee : See First Schedule.FORM 15The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For The Restoration Of Patent(See section 60; rule 84)

1. Insert the name, address, nationality of the applicant(s).

I/We .....

.....

.....

herebyapply for an ordd of the Controller for the restoration of Patent No ..... to.....

.....

.....

The circumstances which led to the failure to pay the renewal fee for the year ..... before..... are as follows:

.....

.....

I/We declare that I/We have not assigned the patent to any other person(s) and that the facts knowledge information and belief.

Dated this .....day of.....20.....

2. To be signed by the applicant(s) or by his authorised registered patent agent.

Signature.....

3. Name of the natural person who has signed.

(.....).....

To

The Controller of Patents,

The Patent Office,

At.....

Note. - For fee : See First Schedule.FORM 16The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Registration Of Title/interest In A Patent Or Share In It Or Registration Of Any Document Purporting To Affect Proprietorship Of The Patent[See sections 69(1), 69(2); rules 90(1), 90(2)]

1. Insert the name, address and nationality of the applicant(s)

I/We .....

.....

.....

	hereby apply that my/our name(s) may be registered in the register of patent as a person ent patent details of which are specified below : Patent No.....dated..... Grantee..... Patentee..... transmit the accompanying..... with a certified copy thereof.
2.Adescription of the nature of the document, giving the date and the names, address and nationality of the parties thereto.	OR Transmit herewith an attested copy of..... No(s).....dated.....gr .....as well as the original document for thereof may be entered in the register of patents.
3. Complete address including postal code and State alongwith telephone and fax number(s).	My/our address for service inIndiais..... ....
4. To be signed by the applicant or his authorised registered patent agent.	Dated this ..... day of..... 20..... Signature.....
5. Name of the natural person who has	(.....).....

signed.

To

The Controller of Patents,

The Patent Office,

At.....

Note :-(a) For fee: See First Schedule.(b)Strike out whichever is not applicable.FORM 17The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Compulsory Licence(See sections 84(1), 91, 92(1) or 92-A; rule 96)

1. Name, address and nationality of the applicant(s).

I/We.....

.....

.....

hereby apply for the grant of a compulsory licence under Patent No .....
to.....for which the patentee is.....

.....

.....

.....

.....

I/We declare that the facts and matters stated herein are true to the best of my/our knowledge

2. Certified copies of the documents are to be enclosed in duplicate.

The details of documentary evidence in support of my/our interest and the grounds stated abo
below:.....

(a).....

(b).....

(c).....

3. Complete address including postal code and State alongwith telephone and fax number(s).

My/our address for service inIndiais.....

.....

.....

.....

4. To be signed by the applicant(s) or by his authorised registered patent agent.

Dated this..... day of.....20.....

Signature.....

5. Name of the natural person who has signed.

(.....).....

To

The Controller of Patents,

The Patent Office,

At.....

Note. - For fee : See First Schedule.

FORM 18

(FOR OFFICE USE ONLY)

THE PATENTS ACT, 1970

(39 of 1970)

and

THE PATENTS RULES, 2003

REQUEST /EXPRESS REQUEST FOR EXAMINATION OF APPLICATION FOR PATENT

[See section 11-B and rules 20(4)(ii),24-B(1)(i)]

RQ. No. :

Filling Date :

Amount of Fee Paid :

CBR No. :

Signature :

1. APPLICANT(S)/OTHER INTERESTED PERSON

(a)Name:(b)Nationality:(c)Address:(d)[date of publication of the application under section 11-A .....] [Added by S.O. 657(E), dated 5-5-2006 (w.e.f. 5-5-2006).]

2. STATEMENT IN CASE OF REQUEST FOR EXAMINATION MADE BY THE APPLICANT(S)

I/We hereby request that my/our application for patent no .....filed

on.....for the invention titled.....shall be examined under sections 12 and 13 of the Act.ORI/We hereby make an express request that my/our application for patent no .....filed on.....based on Patent Cooperation Treaty (PCT) application no.....dated.....made in country.....shall be examined under sections 12 and 13 of the Act, immediately without waiting for the expiry of 31 months as specified in rule 20(4)(ii).

3. STATEMENT IN CASE OF REQUEST FOR EXAMINATION MADE BY ANY OTHER INTERESTED PERSON

I/We the interested person request for the examination of the application no.....dated.....filed by the applicant.....titled.....under sections 12 and 13 of the Act. As an evidence of my/our interest in the application for patent following documents are submitted.(a).....

4. ADDRESS FOR SERVICE

Dated this.....day of..... 20.....SignatureName of the signatoryTo[The Controller of Patents], [Substituted by S.O. 657(E), dated 5-5-2006, for "The Controller of Patent" (w.e.f. 5-5-2006).]The Patent Office,At.....Note: -*To be signed by the applicant(s) or by his authorised registered patent agent.*Strike out the column which is/are not applicable.*For fee: See first Schedule.

[Form18 A] [Inserted by Notification No. G.S.R. 523(E), dated 16.5.2016 (w.e.f. 2.5.2003).]ThePatents Act,1970andThe Patent Rules,2003Requestfor Expedited Examination ofApplicationfor Patent[Seesection 11B and Rule 24C]

(ForOffice use only)RQ. No.:Filing Date:Amount of feePaid:CBR no:Signature:

1. Applicant(s)(A) Name :(B) Nationality(C) Address :

2.I/ We----------hereby request that my/ our applica
13 of the Act.orI/We----------herebyrequest that my
Cooperation Treaty (PCT) application no..... dated..... madein country .....
----------filed on ---------- for---------- the----------
indicate (by ticking the appropriate box) any ofthe grounds applicable in case of request for expeditedexami
application.

Addressfor Service in India.....

Datedthis day of 20SignatureNameof the signatoryToTheController of PatentThePatent Office, at .....Not

FORM 19The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Revocation Of A Patent For Non Working(See section 85(1); rule 96)

1. Name, address and nationality of the applicant(s).

I/We.....

.....

.....

.....

herebyapply for revocation of Patent No .....

granted to .....

is..... for the following reasons, namely:

2. State the nature of the applicant's interest, the facts on which he relies and the grounds on which the application is made.

.....

.....

3. Certified copies of all the documents are to be enclosed in duplicate.

The details of documentary evidence in support of my/our interest and the reasons stated ab

(a).....

(b) .....

(c).....

I/We declare that the facts and matters stated herein are true to the best of my/our knowledg

4. Complete address including

My/our address for service inIndiais :

postal index number/code and State alongwith telephone and fax number(s).	.....
	.....
	.....
5. To be signed by the applicant(s) or by his authorised registered patent agent.	Dated this .....day of.....20.....
6. Name of the natural person who has signed.	Signature.....
	(.....) .....
	To
	The Controller of Patents,
	The Patent Office,
	At.....

Note. - (a) For fee : See First Schedule.(b)Strike out whichever is not applicable.FORM 20The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Revision Of Terms And Conditions Of Licence(See section 88(4); rule 100)

1. Name, address and nationality of the applicant(s).	I/We.....
	.....
	.....
	hereby declare:
	(i) that Patent No .....dated.....
	.....for which the patentee is.....
	(ii) that I/We am/are holding licence under the patent, granted by the Controller by an order d
	(iii) that the terms and conditions settled by the Controller have proved to be more onerous th

(iv) that the circumstances in which this application is made are set forth in the accompanying

I/We request the Controller to revise the terms and conditions of the licence.

2. To be signed by the applicant(s) or by his authorised registered patent agent.

Dated this .....day of..... 20.....

Signature.....

(.....).....

3. Name of the natural person who has signed.

To

The Controller of Patents,

The Patent Office,

At.....

Note. - (a) For fee : See First Schedule.(b)Strike out whichever is not applicable.FORM 21The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Request For Termination Of Compulsory Licence[See section 94; rule 102(1)]

1. Name, address and nationality of the applicant(s).

I/We.....

.....

.....

herebyapply for the termination of the compulsory licence granted to .....
dated..... under[Patent No.] [Substituted by S.O. 657(E), dated 5-5-2006, for "Pa
5-5-2006).].....dated ..... g
the patentee .....

I/We declare that I am/We are the patentee for the above-mentioned patent.

I/We declare that I/We derive title/interest in the patent.

I/We make the above-mentioned request for termination on the following grounds, namely:

.....

.....

I/We declare that the facts and matters stated herein are true to the best of my/our knowledge

2. Certified

The details of documentary evidence in support of my/our interest and the grounds stated abo

copies of the documents are to be enclosed in duplicate.	
	(a)..... (b)..... (c).....
3. Complete address including postal code and State alongwith telephone and fax number(s).	My/our address for service inIndiais: ....
4. To be signed by the applicant(s) or by his authorised registered patent agent.	Dated this .....day of .....20.....
5. Name of the natural person who has signed.	Signature..... (.....)..... To The Controller of Patents, The Patent Office, At.....

Note. - (a) For fee : See First Schedule.(b)Strike out whichever is not applicable.FORM 22The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Registration Of Patent Agent(See rules 109(1) and 112)

I beg to apply for registration as a patent agent under the Patents Act, 1970.

A certificate of character from .....

1. Certificate testifying to the character of the applicant should be from a person not related to him and being a Gazetted Officer or any other person whom the Controller thinks fit.

.....

.....is enclosed herewith.

I hereby declare that I am not subject to any of the disqualifications specified in rule 114 of the Patents -Rules, 2003 and that the information given below is true to the best of my knowledge and belief.

2. Family or principal name in the beginning.

1.Name.....

2. Address/place of residence: .....

.....

.....

3. Principal place of business: .....

.....

.....

4. Address of the branch office if any:.....

.....

.....

5. Father's name: .....

.....

6. Nationality: .....

7. Date and place of birth: .....

.....

8. Occupation: .....

3. Either original certificates and other documents or copies thereof duly attested by the Gazetted Officer or any other person whom the Controller thinks fit must be sent with the application.

9. Particulars of qualification for registration as patent agent.

(a).....

(b).....

(c).....

Dated this .....day of.....20.....

4. To be signed by the applicant. Signature.....

5. Name of the natural person who has signed. (.....).....

To

The Controller of Patents,

The Patent Office,

At.....

Note. - (a) For fee: See First Schedule.(b)Attach two recent passport size photographs.(c)Provide specimen signature in separate sheet.FORM 23The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For The Restoration Of The Name In The Register Of Patent Agents[See section 130(2); rule 117(1)]

I.....

apply for the restoration of my name in the register of patent agent which was removed on .....under Section 130 or rule 116.

My name was originally entered in the register on.....

under.....No.....

Datedthis.....day of.....20.....

Signature.....

1. To be signed by the applicant. (.....).....

2. Name of the natural person who has signed. To

The Controller of Patents,

The Patent Office,

At

.....

Note. - For fee : See First Schedule.FORM 24The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Application For Review/setting Aside Controller's Decision/order[See sections 77(1)(f) and 77(1)(g); rules 130(1) and 130(2)]

1. State the number of patent or patent In the matterof'.....

application number and the relevant proceeding.	
	.....
	.....
2. Name, address and nationality of the applicant(s).	I/We.....being the applicant(s)/opponent/party in the above matter hereby apply for the review/setting aside of the Controller's decision/order dated the .....in the above matter.
	The grounds for making the application are set forth in the accompanying statement submitted in duplicate.
3. To be signed by the applicant(s) or his authorised registered patent agent.	Dated this.....dayof .....20.....
	Signature.....
4. Name of the natural person who has signed.	(.....).....
	To
	The Controller of Patents,
	The Patent Office,
	At.....

Note. - For fee: See First Schedule.FORM 25The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Request For Permission For Making Patent Application Outside India[See section 39 and rule 71(1)]

1. State the title of the invention.	I am/We are in possession of an invention for .....
	.....
	I/We have made an application for the grant of a patent for the said invention, its number being No .....of Dated.....
	OR
	I/We hereby attach the brief description of the invention.
2. Name and address of the person(s).	I/We intend make application(s) alone/jointly with.....or the same/substantially same invention for patent in the following country/countries/convention countries, namely :-
	.....
	.....

3. Name and address of the assignee.	I/We declare that the rights in the application(s) has/have been assigned to.....
	.....
	.....
	I/We request that I/We may be granted permission to make application(s) for the said invention in the said country/countries. The reasons for making this application, are as follows :-
	The facts and matters stated above are true to the best of my/our knowledge, information and belief.
	Dated this ..... day of.....20.....
	Signature.....
4. To be signed by applicant(s) or authorised patent agent.	To
	The Controller of Patents,
	The Patent Office,
	At.....

[Note. - (a) Strike out whichever is not applicable.(b)For fee : See First Schedule.]FORM 26The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003Form For Authorisation Of A Patent Agent/or Any Person In A Matter Or proceeding Under The Act(See sections 127 and 132; rule 135)

1. Insert name, address and nationality.	I/We.....
	.....
	.....
2. Insert the name, address and nationality of the person(s) to be authorised.	herebyauthorize.....
	.....
3. State the particular matter or proceeding for which the authorisation is made.	toact on my/our behalf in connection with .....and request that all notices, requisitions and communication relating thereto may be sent to such person at the above address unless otherwise specified.
	I/We hereby revoke all previous authorisation, if any made, in respect of same matter or proceeding.
	I/We hereby assent to the action already taken by the said person in the above-matter.
	Dated this .....day of.....20.....
4. To be signed by the	

person(s) making this authorisation.

5. Name of the natural person who has signed alongwith designation and official seal, if any.

Signature.....

(.....).....

To

The Controller of Patents,

The Patent Office,

At.....

*To be stamped under the Indian Stamp Act, 1899 (2 of 1899).FORM 27The Patents Act, 1970(39 OF 1970)ANDThe Patents Rules, 2003No FeeStatement Regarding The Working Of The Patented Invention On Commercial Scale In India[See section 146(2); rule 131(1)]

1. Insert name, address and nationality.

In the matter of Patent No.....of.....

I/We.....

.....

2. State the year to which the statement relates.

The patentee(s) or licensee(s) under Patent No .....hereby furnish the following statement regarding the working of the patented invention referred to above on a commercial scale in India for the year.....

3. Give whatever details are available.

3. (i) The patented invention:

{}Worked {} Not worked [Tick (❑) mark the relevant box]

(a) if not worked: reasons for not working and steps being taken for working of the invention.

(b) If worked: quantum and value (in Rupees), of the patented product :

(i) manufactured inIndia

(ii) imported from other countries.

(give country wise details)

(ii) the licences and sub-licences granted during the year;

(iii) state whether public requirement has been met partly/adequately/to the fullest extent at reasonable price.

The facts and matters stated above are true to the best of my/our knowledge, information and belief.

Datedthis.....day of.....20.....

4. To be signed by person(s) giving the statement.	Signature.....

To

The Controller of Patents,

The Patent Office,

At.....

Note. - Strike out whichever is not applicable.[THE THIRD SCHEDULE] [Substituted by S.O. 657 (E), dated 5-5-2006, for Third Schedule (w.e.f. 5-5-2006).](Refer rule 74)FORM OF PATENTGOVERNMENT OF INDIAPatent No.....

No.....

of filing.....

(Where applicable).....It is hereby certified that a patent has been granted to the patentee for an invention entitled.....a disclosed in the abovementioned application for the term of 20 years from the.....day of.....19/20..... in accordance with the provisions of the Patents Act, 1970.Controller of PatentsDate of Grant.....(Seal of the Office)Note. - The fees for renewal of this patent, if it is to be maintained, will fall due on.....day of.....20.....and on the same day in every year thereafter.[THE FOURTH SCHEDULE] [Substituted by S.O. 1418(E), dated 28-12-2004 (w.e.f. 1-1-2005).][See proviso to rule 136(1)]

Number of entry	Matter in respect of which cost is to be awarded	Amount of fees (in Rupees)	
		For natural person(s)	For other than natural person(s) either alone or Jointly with other(s)
1	2	3	4
1.	For notice of opposition: under sections 25, 57, 60, 63, 78, 87(2) or 88(4)	1,500	6,000
2.	For application for compulsory licence: under sections 84(1), 91(1) or 92(1)	1,500	6,000
3.	For application for revision of terms and conditions of licence: under section 88(4)	1,500	6,000

4.	For notice of intention to attend the hearing under rule 62(2)	1,500	6,000
5.	Stamp fee for power of attorney, where a patent agent or other person has been appointed or stamp fee in respect of relevant affidavits	The amount actually paid	The amount actually paid
6.	For written statement under rule 57 orreply statement under rule 58 or for each affidavit, if relevant	2,500	2,500
7.	For each document or publication produced in the proceedings, if relevant	1,000	1,000
8.	For each unnecessary or irrelevant affidavit or citation	1,000	1,000
9.	For every day or part day of hearing before the Controller.	2,500	2,500

Important NotificationsMinistry of Commerce and Industry(Department of Industrial Policy and Promotion)NotificationNew Delhi, the 20th May, 2003.(Published in the Gazette of India, Extra. Pt. II, Section 3(ii), dated 20th May, 2003)S.0.561(E). - In exercise of the powers conferred by sub-section (2) of Sec. 1 of the Patents (Amendment) Act, 2002 (38 of 2002), the Central Government hereby appoints the 20th day of May, 2003 as the date on which the following provisions of the said Act shall come into force, namely:-

1. Sub-clauses (ab) and (ac) of clause(a),clauses(b),(c),(d),(e),(f),(g), (h) and sub-clauses (A) and (C) ofclause (i) of Sec.3;
2. Section 4;
3. Section 5;
4. Section 6;
5. Section 7;
6. Section 8;
7. Section 9;
8. Section 10;
9. Section 11;
10. Section 12;
11. Section 13;
12. Section 14;
13. Section 15;
14. Section 16;
15. Section 17;
16. Section 18;
17. Section 19;
18. Section 20;
19. Section 21;
31. Section 33;
32. Section 34;
33. Clause(b) of Section 36;
31. Section 37;
35. Section 38;
36. Section 39;
37. Section 40;
38. Section 41;
39. Section 42;
40. Section 43;
41. Section 44;
42. Section 45;
43. Section 46;
44. Section 48;
45. Section 49;
46. Section 50;
47. Section 51;
48. Section 52;
49. Section 53;

20. Section 22;
21. Section 23;
22. Section 24;
23. Section 25;
24. Section 26;
25. Section 27;
26. Section 28;
27. Section 29;
28. Section 30;
29. Section 31;
30. Section 32;
50. Section 54;
51. Section 55;
52. Section 56;
53. Section 57;
54. Section 58;
55. Section 59;
56. Section 60;
57. Section 61;
58. Section 62;
59. Section 63;
60. Clauses (a),(b),(c) and (e) of Section 64;
61. Section 65; and
62. Section 66;

Ministry of commerce and Industry(Department of Industrial Policy and Promotion)NotificationNew Delhi, the 20th May, 2003(Published in the Gazette of India, Extra. Pf. II, Sec. 3(ii), dated 20th May, 2003)S.0.563(E). - In exercise of the powers conferred by Sec. 10 of the Patents Act, 1970 (39 of 1970), the Central Government hereby notifies the following institutions as authorized depository institutions, with effect from the date of publication in the Official Gazette, namely:-

SI. No.	Name of Institution	Country
1.	Advanced Biotechnology Centre (ABC)	Italy
2.	Agricultural Research Service Culture Collection (NRRL)	United States of America
3.	American Type Culture Collection (ATCC)	United States of America
4.	Australian Government Analytical Laboratories (AGAL)	Australia
5.	Belgian Coordinated Collections of Micro-oganisms (BCCM)'	Belgium
6.	CABI Bioscience, UK Centre (IMI)	United Kingdom
7.	Central bureau voor Schimmelcultures (CBS)	Netherlands
8.	China Centre for Type Culture Collection (CCTCC)	China
9.	China General Microbiological Culture Centre (CGMCC)	China
10.	Coleccion Espanola de Cultivos Tipo (CECT)	Spain
11.	Collection National de Cultures de Micro-organisms (CNCM)	France
12.	Collection of Industrial Yeasts DBVPG	Italy
13.	Culture Collection of Algae and Protozoa (CCAP)	United Kingdom
14.	Culture Collection of Yeasts (CCY)	Slovakia

15.	Czech Collection of Micro-organisms (CCM)	Czech Republic
16.	Deutsche Sammlung von Micro-organisms and Zelkulturen GmbH(DSMZ)	Germany
17.	European Collection of Cell Cultures (ECACC)	United Kingdom
18.	IAFB Collection of Industrial Microorganisms	Poland
19.	International Patent Organism Depositary (IPOD)	Japan
20.	Korean Cell Line Research Foundation (KCLRF)	Republic of Korea
21.	Korean Collection for Type Cultures (KCTC)	Republic of Korea
22.	Korean Culture Centre of Micro-organisms (KCCM)	Republic of Korea
23.	Microbial Strain Collection of Latvia (MSCL)	Latvia
24.	Microbial Type Culture Collection and Gene Bank (MTCC)	India
25.	National Bank for Industrial Micro-organisms and CellCultures (NBIMCC)	Bulgaria
26.	National Collection of Agricultural and IndustrialMicro-organisms (NCAIM)	Hungary
27.	National Collection of Type Cultures (NCTC)	United Kingdom
28.	National Collection of Yeast Cultures (NCYC)	United Kingdom
29.	National Collection of Industrial, Food and Marine Bacteria(NCIMB)	United Kingdom
30.	National Microbiology Laboratory, Health Canada (NMLHC)	Canada
31.	National Research Centre of Antibiotics f	Russian Federation
32.	Polish Collection of Micro-organisms (PCM)	Poland
33.	Russian Collection of Micro-organisms (VKM)	Russian Federation
34.	Russian National Collection of Industrial Micro-organisms (VKPM), GNU Genetika	Russian Federation

Ministry of Commerce and Industry(Department of Industrial Policy and Promotion)NotificationNew Delhi, the 20th May, 2003.(Published in the Gazette of India, Extra. Pt. II, Section 3(ii), dated 20th May, 2003)S.0.562(E). - In exercise of the Powers conferred by sub-section (1) of Sec. 133 of the Patents Act, 1970 (39 of 1970) and in supersession of notifications of Government of India in the Ministry of Industry, numbers S.0.865(E) dated the 28th September, 1998, S.0.1017(E) dated 30th November, 1998 and S.0.1018 dated 30th November, 1998, except as respect things done or omitted to be done before such supersession, the Central Government hereby

declares the following countries including a group or union of countries or inter-governmental organisations as convention countries with effect from the date of publication in the Official Gazette for purposes of the provisions of the said Act, namely:-

SI. No.	Name of Country / Group or union ofCountries/Inter-governmental Organisation
1.	Albania;
2.	Algeria;
3.	Angola;
4.	Antigua and Barbuda
5.	Argentina;
6.	Armenia;
7.	Australia;
8.	Austria;
9.	Azerbaijan;
10.	Bahamas;
11.	Bahrain;
12.	Bangladesh;
13.	Barbados;
14.	Belarus;
15.	Belgium;
16.	Belize;
17.	Benin;
18.	Bhutan; '
19.	Bolivia;
20.	Bosnia and Herzegovina;
21.	Botswana;
22.	Brazil;
23.	Brunei Darussalam;
24.	Bulgaria;
25.	Burkina Faso;
26.	Burundi;
27.	Cambodia;
28.	Cameroon;
29.	Canada;
30.	Central African Republic;
31.	Chad;
32.	Chile;
33.	China;

34. Colombia;
35. Congo;
36. Costa Rica;
37. Coted'Ivoire;
38. Croatia;
39. Cuba;
40. Cyprus;
41. Czech Republic;
42. Democratic People's Republic of Korea;
43. Democratic Republic of the Congo;
44. Denmark;
45. Djibouti;
46. Dominica;
47. Dominican Republic;
48. Ecuador;
49. / Egypt;
50. El Salvador,
51. Equatorial Guinea;
52. Estonia;
53. Fiji;
54. Finland;
55. France;
56. Gabon;
57. Gambia;
58. Georgia;
59. Germany;
60. Ghana;
61. Greece;
62. Grenada;
63. Guatemala;
64. Guinea;
65. Guinea-Bissau;
66. Guyana;
67. Haiti;
68. Holy See;
69. Honduras;
70. Hong Kong (China);

71. Hungary;
72. Iceland;
73. Indonesia;
74. Iran (Islamic Republic of);
75. Iraq;
76. Ireland;
77. Israel;
78. Italy;
79. Jamaica;
80. Japan;
81. Jordan;
82. Kazakhstan;
83. Kenya;
84. Kuwait;
85. Kyrgyz Republic;
86. Lao People's Democratic Republic;
87. Latvia;
88. Lebanon;
89. Lesotho;
90. Liberia;
91. Libyan Aran Jamahiriya;
92. Liechtenstein;
93. Lithuania;
94. Luxembourg;
95. Macao (China);
96. Madagascar;
97. Malawi;
98. Malaysia;
99. Maldives;
100. Mali;
101. Malta;
102. Mauritania;
103. Mauritius;
104. Mexico;
105. Monaco;
106. Mongolia;
107. Morocco;

108. Mozambique;
109. Myanmar;
110. Namibia;
111. Nepal;
112. Netherlands;
113. New Zealand;
114. Nicaragua;
115. Niger;
116. Nigeria;
117. Norway;
118. Oman;
119. Pakistan;
120. Panama;
121. Papua New Guinea;
122. Paraguay;
123. Peru;
124. Phillippines;
125. Poland;
126. Portugal;
127. Qatar;
128. Republic of Korea;
129. Republic of Moldova;
130. Romania;
131. Russian Federation;
132. Rwanda;
133. Saint Kitts and Nevis;
134. Saint Lucia;
135. Saint Vincent and the Grenadines;
136. San Marino;
137. Sao Tome and Principe;
138. Senegal;
139. Separate Customs Territory of Taiwan, Penghu, Kinmen andMatsu;
140. Serbia and Montenegro
141. Seychelles;
142. Sierra Leone;
143. Singapore;
144. Slovak Republ ic;

145.	Slovenia;
146.	Solomon Islands;
147.	South Africa;
148.	Spain;
149.	Sri Lanka;
150.	Sudan;
151.	Suriname;
152.	Swaziland;
153.	Sweden;
154.	Switzerland;
155.	Syrian Arab Republic;
156.	Tajikistan;
157.	Thailand;
158.	The former Yugoslav Republic of Macedonia;
159.	Togo;
160.	Tonga;
161.	Trinidad and Tobago;
162.	Tunisia;
163.	Turkey;
164.	Turkmenistan;
165.	Uganda;
166.	Ukraine;
167.	United Arab Emirates;
168.	United Kingdom;
169.	United Republic of Tanzania;
170.	United States of America;
171.	Uruguay;
172.	Uzbekistan;
173.	Venezuela;
174.	Viet Nam;
175.	Zambia;
176.	Zimbabwe;
177.	European Patent Office (EPO)— Where theapplications are received for the following countries: Austria,Belgium, Cyprus, Czech Republic, Denmark, Finland, France,Germany, Hellenic Republic (Greece), Hungary, Ireland, Italy,Liechtenstein, Luxembourg, Monaco, Netherlands, Portugal,Republic of Bulgaria, Republic of Estonia, Republic of Romania,Slovenia, Slovak Republic, Spain, Sweden, Switzerland, Turkey,United Kingdom.

178.	African Regional Industrial PropertyOrganisation (ARIPO)— Where the applications are receivedfor the following countries: Botswana, Gambia, Ghana, Kenya,Lesotho, Malawi, Mozambique, Sierra Leone, Sudan, Swaziland,Tanzania, Uganda, Zambia and Zimbabwe.
179.	African Intellectual Property Organisation(OAPI)— Where the applications are received for thefollowing countries: Benin, Burkina Faso, Cameroon, The CentralAfrican Republic, Chad, Congo, Equatorial Guinea, Gabon, Guinea,Guinea Bissau, Ivory-Coast (Coted' Ivoire), Mali, Mauritania,Niger, Senegal, Togo.
180.	Eurasian Patent Office (EAPO)— Where theapplications are received for the following countries: Republicof Azerbaijan, Republic of Armenia, Republic of Belarus,Georgia, Republic of Kazakhstan, Kyrgyz Republic, Republic ofMoldova, Russian Federation, Republic of Tajikistan, Ukraine,Turkmenistan.

[Substituted by S.O. 657(E), dated 5-5-2006, for Note (w.e.f. 5-5-2006). Prior to its substitution, Note read as under:- "Note. - Strike out whichever is not applicable."]